JUDICIARY OF TANZANIA

A QUICK REFERENCE FOR MAGISTRATES IN THE DISTRICT COURTS AND COURTS OF RESIDENT MAGISTRATES IN TANZANIA

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TABLE OF CONTENTS

LIST OF CASES xi

FOREWORD xxiii

ACKNOWLEDGMENT xxv

ABBREVIATIONS xxvii

ADVISORY xxix

CHAPTER ONE 1

CIVIL PRACTICE AND PROCEDURE 1

1.0: Basic Principles of Administration of Justice 1

1.1: Overriding Objective 1

1.2: Establishment of District Courts and Courts of Resident Magistrates 3

1.3: Jurisdiction in General 4

1.3.1: Place of suing 4

1.3.2: Original Jurisdiction 5

1.3.3: Territorial Jurisdiction 5

1.3.4: Pecuniary Jurisdiction 5

1.3.5: Extended Jurisdiction 6

1.3.6: Supervisory Magistrate 7

1.3.7: Honorary Magistrate 7

1.3.8: Concurrent Jurisdiction 7

1.4: Parties to suits 8

1.5: The Institution of suits 8

1.5.1: The plaint 8
1.5.2: Representative suits 9
1.6: Issue and service of summons 9
1.7: Written statement of defence and counter claim 10
1.7.1: Written statement of defence 10
1.7.2: Counter claim (a cross-suit) 10
1.7.3: Extension of time 10
1.7.4: Preliminary objection 10
1.7.5: Res judicata 11
1.7.6: Amendment of pleadings 11
1.8: Appearance of parties and consequences of non appearance 11
1.9: Ex-parte hearing and judgment 12
1.10: Judgment on admission 13
1.11: Temporary injunction, declaratory orders and interlocutory orders 13
1.11.1: Temporary Injunction 13
1.11.2: Interlocutory order 14
1.12: Pre - trial scheduling conference and final pre –trial conference . 14
1.13: Disqualification/recusal of a magistrate 15
1.14: Framing of issues 17
1.15: Adjournments 18
1.16: Transfer of cases 18
1.17: Hearing and examination of witnesses 19

1.18: Arrest and attachment before judgment 20
1.19: Judgment 20
1.20: Decree 21
1.21: Award of Interest 21
1.22: Costs 22
1.23: Stay of execution 22
1.24: Execution of decrees and orders 23
1.25: The Court Brokers and Process Servers (Appointments, Remuneration and Discipline) Rules, 2017 – GN No. 363 of 2017 23
1.26: Objection proceedings 24
1.27: Appeals 24
1.28: Review 25
1.29: Reference (case stated) 25
1.30: Revision 25
CHAPTER TWO 27
CRIMINAL LAW, PROCEDURE AND PRACTICE 27
2.0: Jurisdiction of courts 27
2.1: Summary Jurisdiction 28
2.2: Accused and his plea 30
2.3: Bail 31
2.4: Preliminary hearing 31
2.4.1: Alibi 32
2.5: The criminal trial 32

2.5.1: Adjournments..... 33
2.6: Judgment and conviction..... 34
2.6.1: Sentence..... 34
2.6.2: Disposal of exhibits..... 35
2.7: General principles 35
2.7.1: Accessory after the fact 35
2. 7.2: Issue estoppel..... 35
2.7.3: Aiding and abetting 35
2.7.4: Autrefois acquit and autrefois convict 36
2.7.5: Common intention 36
2.7.6: Recent possession 37
2.7.7: Receiving stolen property..... 38
2.7.8: Identification parades 39
2.8: Appeals 39
2.8.1: The process and procedure 40
2.9: Revision 40
2.9.1: Power of the District and Resident Magistrates Court on Revision 40
2.10: Committal Proceedings in cases triable by the High Court..... 40
2. 11: Economic offences CAP 200..... 41
2.11.1: Jurisdiction..... 41
2.11.2: Bail 42
2.11.3: Consent of the DPP..... 44

2.11.4: Preliminary inquiry of economic offences 44

2.11.5: Committal proceedings of economic offences under G.N. No. 267/2016 45

2.12: Contempt of Court 45

CHAPTER THREE 46

PROBATE AND ADMINISTRATION OF ESTATES PROCEEDINGS 46

3.0: Introduction 46

3.1: Laws applicable in Probate and Administration of Estates in Tanzania 47

3.1.1: The Indian Succession Act, 1865 47

3.1.2: The Succession (Non-Christian Asiatics) Act, Cap 28 R.E. 200247

3.1.3: The Judicature and Application of Laws Act, Cap 358 R.E. 2002 47

3.1.4: The Probate and Administration of Estates Act, Cap 352 R.E. 2002 48

3.1.5: The Administrator- General (Powers and Functions) Act, Cap 27 R.E. 2002 48

3.1.6: The Magistrates' Courts Act, Cap 11 R.E. 2002 48

3.1.7: The Law of the Child Act No. 21 of 2009 49

3.1.8: The Civil Procedure Code, Cap 33 R.E. 2002..... 49

3.2: Conflict of laws in probate and administration of the estate of the deceased..... 49

3.3: Jurisdiction of Courts in Probate and Administration of Estates 51

3.4: Citation 53

3.5: Non- contentious petition [no objection to the grant] 54

3.6: Caveat 54

3.7: Contentious petition [objection to grant-caveat] 56

3.8: Proceedings subsequent to caveat 57

3.9: Limitation period of caveat 59

3.10: Grant of probate and letters of administration..... 61

3.11: Powers and duties of executors and administrators 61

3.12: Revocation of grants 64

3.13: Procedure after grant of probate and letters of administration ... 64

3.14: The role and duties of the Administrator General, Cap 27 67

3.15: Some Important Matters..... 67

CHAPTER FOUR 68

EVIDENCE RULES 68

4.0: General rules of Evidence 68

4.1: Burden of proof 69

4.2: Standard of proof in Criminal cases 70

4.3: Standard of proof in Civil cases 71

4.4: Admission of evidence 71

4.5: Circumstantial evidence 72

4.6: Corroboration 73

4.7: Competence, compellability, privileges and credibility of witnesses74

4.7.1: Competence 74

4.7.2: Compellability 75

4.7.3: Privilege 75
4.7.4: Credibility 75
4.8: Confessions 77
4.9: Cautioned statements 77
4.10: Retracted and repudiated confession 78
4.11: Exclusion of evidence illegally obtained 78
4.12: Evidence of accomplice 80
4.13: Evidence of a child 80
4.14: Statements by medical witnesses [S. 240(3) CPA] 81
4.15: Electronic evidence 81
4.16: Estoppel 82
4.17: Judicial notice 82
CHAPTER FIVE 85
MATRIMONIAL PROCEEDINGS 85
5.1: Definition of marriage 85
5.2: Conciliation Boards 85
5.3: Presumption of Marriage 85
5.4: Void and voidable marriages 86
5.5: Divorce and Separation 87
5.5.1: Divorce 87
5.5.2: Separation 88
5.6: Custody of children 89
5.7: Division of matrimonial assets 89

5.8: Maintenance orders 90
CHAPTER SIX 91
SENTENCING 91
6.1: Jurisdiction 91
6.2: Factors to be taken into account in sentencing 92
6.3: The discretion of the court in sentencing 93
6.4: Types of sentences 93
6.5: Concurrent and consecutive sentences 94
6.6: Substituted sentence 94
6.7: Suspended sentence 94
6.8: Omnibus sentences 95
CHAPTER SEVEN 96
JUDGMENT WRITING 96
7.1: Definition 96
7.2: Style 96
7.3: Purpose of a judgment 96
7.4: Elements of a good judgment 96
7.5: Essentials of a judgment 97
7.6: Delivery of a judgment 97
CHAPTER EIGHT 99
JUDICIAL ETHICS AND CONDUCT 99
8.1: Meaning and general overview 99
8.2: The Purpose of Judicial Ethics and Conduct 101

8.3: Sources of Judicial Ethics and Conduct 101
8.4: Breach of the Code of Conduct 102
8.5: Fundamental matters contained in the Codes of conduct and ethics 102
8.5.1: The Rules of the Code of Conduct for Judicial Officers of Tanzania, 1984 102
8.5.2: Bangalore Principles of Judicial Conduct, 2003.....103
8.5.3: The Code of Ethics and Conduct for Public Service.....104
8.5.4: The Leadership Code of Ethics Act, Cap 398 RE 2015 105
8.6: Disciplinary Procedures for Magistrates.....113
8.6.1: The Judicial Service Commission (JSC).....113
8.6.2: The Judicial Officers Ethics Committee.....115
8.6.3: The Regional Judicial Officers Ethics Committee 116
8.6.4: The District Judicial Officers Ethics Committee.....117
8.6.5: Dismissal and removal 118
8.6.6: Disciplinary Charges 119
8.6.7: Some instances of misconduct.....119
CHAPTER NINE.....121
CHILDREN AND THE LAW 121
9.1: The Law of the Child Act No. 21 of 2009 121
9.2: Principles of Justice for Children.....123
9.3: The Law on Juvenile Justice.....123
9.4: The Juvenile Court – Sections 97 -114, Act No. 21 of 2009.....124

9.5: The trial procedure and practice 125

9.6: Sentencing 125

9.7: Sentencing principles 125

9.8: Types of Sentences (Non- custodial orders).....126

9.9: Breach of non- custodial orders 127

9.10: Approved School (Custodial orders).....127

LIST OF CASES

A

Abdulswamadu Azizi v. Republic, Criminal Appeal No. 180 of 2011, CAT (unreported

Ahmed Mohamed Al-Laamar v. Fatuma Bakari and Another, Civil Appeal No. 71 of 2012, CAT (unreported)

Agness Simbambili Gabba v. Samson Gabba, Civil Appeal No. 20 of 2008, CAT (unreported)

Attorney General and Two Others v. Eligi Edward Massawe and 104 Others, Civil Appeal No. 86 of 2002, CAT (unreported)

Attorney General of Kenya v. Prof Anyang Nyongo and Ten Others, Civil Application No 5 of 2007 EACJ [2007]1 EC 12

Attorney General v. Jeremiah Mtobesya, Civil Appeal No. 65 of 2016, CAT (unreported)

Alfayo Valentino v. Republic, Criminal Appeal No. 92 of 2006, CAT (unreported)

Ali Salehe Msutu v. R [1980] TLR 1

Ali Pazi v. Hamis Mohamed (1968) HCD n.18

Ally Bakari and Pili Bakari v. Republic [1992] TLR 10

Ally Msutu v. Republic [1980] TLR 1

Ally Omari Abdi v. Amina Khalil Ally Hildid, Civil Appeal No. 103 of 2016, CAT (unreported)

Albert Braganza and Another v. Mrs. Flora L. Braganza [1992] TLR 307

Ami Omary @ Senga and Three Others v. Republic, Criminal Appeal No. 233 of 2013, CAT (unreported)

Amina Taratibu Monde v. Sulemani Ahmedi Mtalika [2000] TLR 56

Amir Mohamed v. Republic [1994] TLR 138

Amon Mwangasala v. Republic [1978] LRT 19

Andrea Obonyo v. Republic [1962] EA 542

Antony Mutafungwa v. The Republic, Criminal Appeal No 267 of 2010, CAT (unreported)

Arcado Ntagazwa v. Bunyambo [1997] TLR 242

Asoka v. Republic (1971) HCD n.192

Asha Shemzigwa v. Halima A. Shekigenda [1998] TLR 254

Athanas Makungwa v. Darini Hassani [1983] TLR 132

Augustine Lyatonga Mrema and Two Others v. Abdallah Majengo and Two Others [2001] TLR 67

Azizi Abdallah v. Republic [1991] TLR 71

B

Bahawari v. Bahawari (1971) HCD n.102

Basiliza B. Nyimbo v. Henry Simon Nyimbo [1986] TLR 93

Baguani Mhina Jumbe v. Republic, Criminal Appeal No. 120 of 1993, CAT (unreported)

Benego Mathayo and Two Others v. Republic, Criminal Appeal No. 251 of 2006, CAT (unreported)

Bernadeta Paul v. Republic [1992] TLR 97

Bi Hawa Mohamed v. Ally Seif [1983] TLR 32

Boniface Mbije and Another v. Republic [1991] TLR 156

C

Charles Vitalis Ndege Matutu and Others v. Republic, Criminal Appeal No. 257 of 2014, CAT (unreported)

Chacha Makoli Chacha v. Republic [1998] TLR 413

CRDB v. Filton [1993] TLR 284

Clement Pancras v. Republic, Criminal Appeal No. 77 of 2009, CAT (unreported)

D

Damiano Petro and Jackson Abrahamu v. Republic [1980] TLR 260

Daudi Pete v. Republic [1993] TLR 22

Deocras Lutabana v. Deus Kashaga [1981] TLR 122

Dinya v. Dawa (1971) HCD n.30

Director of Public Prosecutions v. Christopher Kikubwa and Another [1980] TLR 167

Director of Public Prosecutions v. Regina Karantini and Another, Criminal Appeal No. 110 of 1998, CAT (unreported)

Director of Public Prosecutions v. Daudi Mwayonga, Criminal Appeal No. 155 of 1994, CAT (unreported)

Dotto Malamla v. Lukelesha Lyaku [1981] TLR 29

Dr. Gabriel Michael Muhagama v. Salim Abas Salim and Two Others [2006] TLR 336

E

E.A Posts and Telecommunications Corporation v. M/S Terrazo Paviors [1973] TLR 58

Edward D. Kambuga and Another v. Republic [1990] TLR 84

Efraim Lubambi v. Republic [2000] TLR 265

Emmanuel Simforian Massawe v. The Republic, Criminal Appeal No. 252 of 2016, CAT (unreported)

Eustace v. Republic [1970] EA 393

Executive Secretary Wakf and Trust Commission v. Said Salmin Ambar, Civil Appeal No. 7 of 1996, CAT (unreported)

F

Fanuel Mantiri Ng'unda v. Herman M. Ng'unda and Others, Civil Appeal No 8 of 1995, CAT (unreported)

Fatuma Aman v. Rashid Athuman (1967) HCD n.48

Fernandes v. Commercial Bank of Africa Limited [1969] EA 482

Floriculture International Ltd v. Central Kenya Ltd and Others [1995-1998] EALR 39

Francis Andrew v. Kamyn Industries (T) Ltd [1986] TLR 31

Francis Leo v. Paschal Simon Maganga [1978] TLR 22

Furaha Johnson v. Republic, Criminal Appeal No. 452 of 2015, CAT (unreported)

G

Gerard Chuchuba v. Rector Itaga Seminary [2002] TLR 213

George M. Shambwe v. Attorney General and Another [1996] TLR 334

Godfrey James Ihuya and Others v. Republic [1980] TLR 197

Godfrey Richard v. Republic, Criminal Appeal No. 365 of 2008, CAT (unreported)

Godbless Jonathan Lema v. Mussa Hamis Mkanga and Two Others, Civil Appeal No. 47 of 2012, CAT (unreported)

Golcher v. General Manager M.C. [1987] TLR 78

Goodluck Kyando v. Republic [2006] TLR 363

H

Hadija Masudi (As the legal representative of the late Halima Masudi) v. Rashid Masudi, Civil Appeal No. 26 of 1992, CAT (unreported)

Halima Kahema v. Jayantilal G. Karia [1987] TLR 147

Harubushi Seif v. Amani Rajabu [1986] TLR 221

Hattan v. Republic [1969] HCD n.234

Hemedi S. Tamim v.Renata Mashayo [1994] TLR 197

Hussein Iddi and Another v. Republic [1986] TLR 166

I

Ibrahimu Kusega v. Emmanuel Mweta [1986] TLR 26

Ignazio Messina and Another v. Willow Investments and Another, Civil Appeal No. 105 of 1998, CAT (unreported)

Ilanda Kisongo v. Republic [1960] EA 780

Isambi Saini @Mwazembe v. Republic, Criminal Appeal No. 142 of 2010, CAT (unreported)

Issa Mashaka v. Abrahamani Kassimo, (PC) Civil Appeal No. 35 of 1996 (unreported)

Issa Athuman Tojo v. Republic [2003] TLR 199

Isidori Patrice v. Republic, Criminal Appeal No. 224 of 2007, CAT (unreported)

In the Matter of the Estate of the late Col. Secilius Kutisa Fussi and In the Matter of Application for Grant of Letters of Administration by Dorah Kawawa Fussi, Probate and Administration Cause No. 57 of 2010, HC (unreported)

In the Matter of the Estate of the late Joseph Saroni Tarimo and In the Matter of Application for Letters of Administration by Mage Joseph Tarimo, Probate and Administration Cause No. 6 "B" of 2002, HC (unreported)

J

James Kabalo Mapalala v. British Broadcasting Corporation [2004] TLR 143

Japan International Cooperation Agency (JICA) v. Khaki Complex Limited [2006] TLR 343

Jayantkumar Chandubhai Patel and Three Others v. Attorney General and Two Others, Civil Appeal No. 59 of 2012, CAT (unreported)

Jeremiah Shemweta v. Republic [1985] TLR 228

John M. Byombalirwa v. Agency Maritime International (Tanzania) Limited [1983] TLR 1

John Joseph Onenge and Julius Senene v. Republic [1993] TLR 131

John Faya v. Republic, Criminal Appeal No. 198 of 2007, CAT (unreported)

Joseph Masaganya v. Republic, Criminal Appeal No. 77 of 2009, CAT (unreported)

Joseph Daudi and Another v. Republic, Criminal Appeal No. 447 of 2007 CAT (unreported)

Julius Petro v. Cosmas Raphael [1983] TLR 346

Juma Kadala v. Laurent Mnkande [1983] TLR 103

Juma Thomas Zangira v. Republic [1980] TLR 73

K

Kamgenyi v. Musiru and Another [1968] EA 43

Kangaulu Mussa v. Mchodo [1984] TLR 348

Karata Ernest and Others v. Attorney General, Civil Revision No. 10 of 2010, CAT (unreported)

Kinyori s/o Karatu [1956] 23 EACA 480

Kijakazi Mbegu and 5 Others v. Ramadhani Mbegu [1999] TLR 174

Khamis Rashi Shaban v. Director of Public Prosecutions, Criminal Appeal No. 184 of 2012, CAT (unreported)

L

Laurean G. Rugaimukamu v. Inspector General of Police and AG, Civil Appeal No. 13 of 1999, CAT (unreported)

Laurent Analrti and Another v. Republic [1973] LRT 34

Lawrence Mpinga v. Republic [1983] TLR 166

Lazanus Mrisho Mafia and M/S Shiddya Tours Safaris v. Odilo Gasper Kilenga@Moiso Gasper, Commercial Case No. 10 of 2008, HC-Commercial Division (unreported)

Lembrice Israel Kivuyo v. M/S DH Worldwide Express DH Tanzania, Civil Appeal No. 83 of 2008, CAT (unreported)

Lemonyo Lenuna and Sekitoni Lenuna v. Republic [1994] TLR 54

Libert Hubert v. Republic, Criminal Appeal No. 28 of 1999, CAT (unreported)

Lisabanya Siyantemi v. Republic [1980] TLR 275

M

Makwizi Msuko and Two Others, Criminal Appeal No. 8 of 2001, CAT (unreported)

Maduhu Masele v. Republic [1991] TLR 43

Makondo Maginga v. Republic, Criminal Appeal No. 21 of 2011, CAT (unreported)

Managing Director of Nita Corporation v. Emanuel T. Bishanga [2005] TLR 378

Managing Director, Souza Motors Limited v. Riaz Gulamali and Another [2001] TLR 405

Mark Alexander Gaetje and Two Others v. Brigitte Gaetije Defloor, Civil Revision No. 3 of 2011, CAT (unreported)

Marco s/o Gervas v. Republic [2002] TLR 27

Marwa Mahende v. Republic, Criminal Appeal No. 133 of 1994, CAT (unreported)

Masoud Mbita and Two Others v. Daria Rutihinda, Misc. Civil Application No. 85 of 1998, HC (unreported)

Masumbuko Rashid v. Republic [1986] TLR 212

Mathias Mhyemi and Another v. Republic [1980] TLR 290

Melisho Sindiko v. Julius Kaaya [1977] LRT n.18

Mic Tanzania Limited v. Hindow Cellular Phones Limited, Civil Appeal No. 86 of 2007, CAT (unreported)

Moshi Textile Mills Ltd v. Voest [1975] LRT n.17

M/S.Tanzania China Friendship v. Our Lady of Usambara Sisters [2006] TLR 70

Mukisa Biscuits Manufacturing Co. v. West Distributors Limited [1969] EA 696

Mussa Mwaikunda v. Republic [2006] TLR 387

Mbegu v. Chanzi (1971) HCD n.82

Mgeni Seif v. Mahamed Yahaya Khalfan, Civil Application No. 1 of 2009, CAT (unreported)

Mtale v. January Kapembwa [1976] LRT n.7

MT 38870 PTE Rajabu Mohamend and Others v. Republic, Criminal Appeal No 141 of 1992, CAT (unreported)

Mwajuma Mbegu v. Kitwana Amani, Civil Appeal No. 12 of 2001, CAT (unreported)

Mwangi Njoroge v. Republic [1963] EA 624

Mwita Mhere and Ibrahim v. Republic [2005] TLR 107

Mwita v. Republic (1971) HCD n.112

N

Nazira Kamru v. Mic Tanzania Limited, Civil Appeal No 11 of 2015, CAT (unreported)

Nuru Hussein v. Abdul Ghani Ismail Hussein [2000] TLR 217

NBC v. Cosmas M. Mkoji [1986] TLR 127

NBC and Another v. Ahmed Abderhaman [1997] TLR 259

Nkaile Tozo v. Phillemon Musa Mwashilanga [2002] TLR 276

Nkungu v. Mohamed [1984] TLR 46

Njoro Furniture v. TANESCO [1995] TLR 205

Nyanza Distributors CO. v. Geita General Stores [1971] LRT n.2

P

Pascal Mwita and Two Others v. Republic [1993] TLR 295

Paulo Matheo v. Republic [1995] TLR 144

Paulo Tarayi v. Republic, Criminal Appeal No. 216 of 1994, CAT (unreported)

Pulcheria Pundugu v. Samwel Huma Pundugu [1985] TLR 7

Professor (Mrs) Esther Mwailambo v. Davis J. Mwaikambo and 4 Others, Civil Appeal No. 52 of 1997, CAT (unreported)

R

Rashid and Another v. Republic [1969] EA 138

Rajabu v. Republic [1970] EA 395

Ramadhani Bakari v. Kichunda Mwenda and Another [1973] HCD n.283

Ramesh Rajput v. Sunanda Rajput [1988] TLR 96

Registered Trustees of Social Action Trust Fund and Another v. Happy Sausages Limited and Others [2004] TLR 264

Republic v. Athumani Rutaginga and Another (1975) LRT n.5

Republic v. Dodoli Kapufi and Another, Criminal Revision No. 1 of 2008 C/F No 2 of 2008, CAT (unreported)

Republic.v. Mohamed Ali Jamal [1948] 15 EACA 126

Republic v. Kassam (1971) HCD n.315

Republic v. Kidato Abdallah [1973] LRT n.82

Republic v. Nanji Sunderji 2 EACA 130

Republic v. Mwango Manaa [1936] 18 EACA 29

Republic v. Suleiman Said and Another (1977) LRT n.29

Republic v. XC 7535 Venance Mbuta [2002] TLR 48

Re: Innocent Mbilinyi, Deceased [1969] HCD n.283

Rev.Christopher Mtikila v. Attorney General [2004] TLR 172

Revenanth Eliawory Meena v. Albert Eliawory Meena and Another, Civil Revision No. 1 of 2017, CAT (unreported)

Rex v. Yonasani Egalu and Others [1942]9 EACA 65

Rex v. Baskerville [1916] 2 K.B 667

Re B [2008] UKHL 35

Richard Bukori v. Republic, Criminal Appeal No. 25 of 2011, CAT (unreported)

Robinson Mwanjisi and Another v. Republic [2003] TLR 218

S

Said Kibwana and General Tyre E.A Ltd v. Rose Jumbe [1993] TLR 175

Samson Buruni @Sibore s/o Buruna v. Republic, Criminal Appeal No. 138 of 2002, CAT (unreported)

Seif Selemani v. Republic, Criminal Appeal No. 130 of 2005, CAT (unreported)

Seif Marare v. Mwadawa Salum [1985] TLR 253

Seko Samwel v. Republic [2005] TLR 371

Sekunda Mbwambo v. Rose Ramadhani [2004] TLR 439

Selemani Abdallah and Two Others v. Republic, Criminal Appeal No. 384 of 2008, CAT (unreported)

Selemani Tilwilizayo v. Republic [1983] TLR 402

Siodi Mindeu v. Kolombo Sokoite and Another [2000] TLR 141

Silvanus Leopold Nguruwe v. Republic [1981] TLR 66

Somoe Nakuwa v. Said Abdallah Nakuwa [2001] TLR 175

Sosthenes Fumbuka v. Republic [2000] TLR 351

Sovelwa Mwayonga v. Republic, Criminal Appeal No. 84 of 1992, CAT (unreported)

Shabani Mbega and Another v. Karadha Company Limited and Another [1975] TLR 13

Shabani Iddi Jololo and Others v. Republic, Criminal Appeal No. 233 of 2013, CAT (unreported)

Shaban Daudi v. Republic, Criminal Appeal No. 28 of 2000, CAT (unreported)

Sheikh Ahmed Said v. The Registered Trustees of Manyema Masjid [2005] TLR 61

Shija Luyeko v. Republic [2004] TLR 254

Shomary Abdallah v. Abdallah Hussein and Another [1991] TLR 135

Stanslaus Rugaba Kazaura and AG v. Phares Kabuye [1982] TLR 338

Stephen M. Wassira v. Joseph Sinde Warioba and AG [1999] TLR 334

Stround v. Lawson (1898) 2QB44

T

Tanzania Knitwear v. Shamshu Ismail [1989] TLR 48

Tanzania Transcontinental Trading Company v. Design Partnership [1999] TLR 258

Tanzania Sand and Stone Quarries v. Omani Ebi [1972] HCD n.219

Tan Gas Distributors v. Mohamed Salim Said and Two Others, Civil Application No. 68 of 2011, CAT (unreported)

TANESCO v. Independent Power Tanzania Limited [IPTL] and Others [2000] TLR 324

Teper v. Republic [1952] AC 480

TPC v. Minister for Labour [1996] TLR 303

Theobald C. Kessy and Vicent Mwaikambo v. Republic [2000] TLR 186

The District Executive Director Tarime District Council and Three Others v. Samwel Mwera Siyange, Civil Revision No.3 of 2014, CAT (unreported)

Thuway Akonaay v. Republic [1987] TLR 92

Twaha Elias Mwandungu v. Republic, Criminal Appeal No. 80 of 1995, CAT (unreported)

U

Uniafrico and two others v. Exam Bank (Ltd), Civil Appeal No. 300 of 2006, CAT (unreported)

V

Violet Ishengoma Kahangwa and Jovine Mutabuzi v. The Administrator General and Mrs Eudokia Kahangwa [1990] TLR 72

Y

Yakobo Magoiga Gichere v. Peninah Yusuph, Civil Appeal No. 55 of 2017, CAT (unreported)

Yasini Mikwanga v. Republic [1984] TLR 10

Z

Zakayo Sungwa Mwashilingi, Rai Mwashilingi and Abel Mwamwezi v. Republic, Criminal Appeal No. 78 of 2007, CAT (unreported)

FOREWORD

The role and responsibility of the Court in the handling of both Civil and Criminal disputes depends on the efficiency of the judicial system and the proper functioning of the legal framework for resolving disputes, in particular. There must therefore exist effective legal institutions, good governance and a conducive environment in which disputes are resolved. To complement these factors, it is significant that competent and efficient institutional arrangements exist to facilitate the effective management of disputes. Moreover, an independent, credible, skilled, well-resourced and efficient judicial system is indispensable if it is to properly discharge its duty in the resolution of disputes timeously and effectively.

As part of the efforts to make justice delivery more efficient and to enable Magistrates to perform their judicial work professionally and diligently, the Judiciary of Tanzania has developed this Quick Reference Guide for Magistrates in the District Courts and Courts of Resident Magistrates. Indeed, the establishment, maintainance and enhancement of a strong, reliable, competent and efficient judicial system is linked to the professional training and appraisal of judicial officers.

The effort to produce a Guide of this kind underscores the fact that the work of Magistrates comprises of a significant portion of the work load of our courts. The Guide also underscores the fact that to do their work well, courts need Magistrates with highest ethical standards and extensive legal knowledge and unique skills in decision making.

This Quick Reference Guide therefore aims primarily at providing judicial officers particularly Resident Magistrates, with a tool that will assist them

in gaining the necessary skills, knowledge and proficiency that would give them a better understanding of legal issues, interpretation of laws, the functions of the Judiciary and methodologies deployed in the adjudication of disputes and decision making.

I wish to congratulate the Team which developed this Quick Reference Guide, and put together the relevant materials on the law, procedure and best practices of adjudication of cases in Tanzania. This crucial information on fundamental issues on some areas of the law and procedure will now be available to Resident Magistrates in the District Courts and Courts of Resident Magistrates and certainly to other judicial officers. I also wish to appreciate the role of the Institute of Judicial Administration Lushoto for coordinating the project.

I hope that all Magistrates will diligently study and apply the best practices contained herein alongside other relevant Acts, regulations and decided cases.

Professor Ibrahim Hamis Juma
Chief Justice
Dar es Salaam, December, 2018

ACKNOWLEDGMENT

Many people and partners have contributed significantly in a variety of ways in the realization of the project for the production and publication of this Quick Reference Guide for Magistrates in Tanzania.

This publication is the product of the joint efforts of the Judiciary of Tanzania and the Team, comprising retired and serving Justices, Judges, Registrars and Judges' Assistants on behalf of the Judiciary of Tanzania who worked tirelessly to produce the work within strict time limits.

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Eliezer Mbuki Feleshi (PhD)
Principal Judge
Dar es Salaam, December, 2018

ABBREVIATIONS

AC - Appeal Cases

AG - Attorney General

CAP - Chapter

CAT - The Court of Appeal of Tanzania

CPC - The Civil Procedure Code

CPA - The Criminal Procedure Act

DPP- Director of Public Prosecutions

EA -The East Africa

EACA - The East Africa Court of Appeal

EACJ - The East African Court of Justice

EALR - East Africa Law Reports

GN - Government Notice

HC- High Court

HCD - High Court Digest

JAA- Judiciary Administration Act

JSC- Judicial Service Commission

KB - King's Bench

LRT - Law Reports of Tanzania

MCA - The Magistrates' Courts Act

PC - Primary Court

PH- Preliminary Hearing

QB - Queen's Bench

R.E - Revised Edition

RM - Resident Magistrate

UKHL - United Kingdom House of Lords

TEA- The Evidence Act

TLR - Tanzania Law Reports

ADVISORY

- It is a good practice that before dealing with any case one should ask himself whether or not he has jurisdiction to deal with it. This is very basic and fundamental – **Fanuel Mantiri Ng'unda v. Herman M. Ng'unda and Others**, Civil Appeal No. 8 of 1995, CAT (unreported).

- Although it is commonly used, there is no word "mention" in the CPC; there is only the word "hearing". The word "mention" is used as a matter of practice only. – **Lembrice Israel Kivuyo v. M/S DH Wordwide Express DH Tanzania**, Civil Appeal No. 83 of 2008, **Executive Secretary Wakf and Trust Commission v. Said Salmin Ambar**, Civil Appeal No. 7 of 1996 (both CAT and unreported).

  But there is no harm in hearing a case on a date set for "mention" if parties are present and are agreeable to the case being heard on that day – **Floriculture International Ltd v. Central Kenya Ltd and Others** [1995 - 1998] EALR, **Wanjiku v. Esso Kenya Ltd** [1995] LLR 3916 (both are Kenyan decisions).

- Please note that under section 8 (a) of the Interpretation of Laws Act [CAP 1 R.E 2002] words importing the masculine gender include the feminine. So, wherever in this text the word "he" is used it includes "she".

CHAPTER ONE

CIVIL PRACTICE AND PROCEDURE

1.0: Basic Principles of Administration of Justice

- Article 107A (2) of the Constitution of the United Republic of Tanzania Cap 2 provides:

  (2) Katika kutoa uamuzi wa mashauri ya madai na jinai kwa kuzingatia sheria, Mahakama zitafuata kanuni zifuatazo, yaani–

  (a) kutenda haki kwa wote bila ya kujali hali ya mtu kijamii au kiuchumi;

  (b) kutochelewesha haki bila sababu ya kimsingi;

  (c) kutoa fidia ipasayo kwa watu wanaoathirika kutokana na makosa ya watu wengine, na kwa mujibu wa sheria mahususi iliyotungwa na Bunge;

  (d) kukuza na kuendeleza usuluhishi baina ya wanaohusika katika migogoro.

  (e) kutenda haki bila ya kufungwa kupita kiasi na masharti ya kiufundi yanayoweza kukwamisha haki kutendeka.

1.1: Overriding Objective

- It is also important to note that overriding objective has been introduced in the Civil Procedure Code, Cap 33 by the Written Laws (Miscellaneous Amendments) (No. 3) Act, 2018 [Act No. 8 of 2018] in which sections 3A and 3B have been added in the Code.

"3A. Overriding Objective of Act

(1)The overriding objective of this Act shall be to facilitate the just, expeditious, proportionate and affordable resolution of civil disputes governed by this Act.

(2) The Court shall, in the exercise of its powers under this Act or the interpretation of any of its provisions, seek to give effect to the overriding objective specified in subsection (1).

3B. Duty to uphold objective

(1). For the purpose of furthering the overriding objective specified in section 3A, the Court shall handle all matters presented before it with a view to attaining the following-

(a) just determination of the proceedings;

(b) efficient use of the available judicial and administrative resources including the use of suitable technology; and

(c) timely disposal of the proceedings at a cost affordable by the respective parties.

(2) A party to proceedings or an advocate for such a party shall have a duty to assist the Court to further the overriding objective of this Act and, to that effect, to participate in the processes of the Court and to comply with the directions and orders of the Court.

(3) The Chief Justice may make rules for better carrying out the provisions of sections 3A and 3B."

- In **Yakobo Magoiga Gichere v. Peninah Yusuph**, Civil Appeal No. 55 of 2017, CAT (unreported) the Court emphasized the importance of giving effect to the overriding objective during dispensation of justice.

1.2: Establishment of District Courts and Courts of Resident Magistrates

The Magistrates' Courts Act, [Cap 11 RE 2002]

S.3 (1) There are hereby established in every district primary courts which shall, subject to the provisions of any law for the time being in force, exercise jurisdiction within the respective districts in which they are established.

S.4 (1) There is hereby established in every district a district court which shall, subject to the provisions of any law for the time being in force, exercise jurisdiction within the district in which it is established.

S.5 (1) The Chief Justice may, by order published in the Gazette, establish courts of a resident magistrate which shall, subject to the provisions of any law for the time being in force, exercise jurisdiction in such areas as may be specified in the order.

S.6 (1) Subject to the provisions of section 7, a magistrates' court shall be duly constituted when held by a single magistrate, being–

(a) in the case of a primary court, a primary court magistrate;

(b) in the case of a district court, a district magistrate resident or a magistrate;

(c) in the case of a court of a resident magistrate, a resident magistrate.

1.3: Jurisdiction in General

- The authority of a court to decide matters brought before it.
- Any trial conducted by a court with no jurisdiction to try the same will be declared a nullity on appeal or in revision- **Melisho Sindiko v. Julius Kaaya** [1977] LRT n.18
- **William Rajabu Mallya and Two Others v. Republic [**1991] TLR 83

  "If a case is designated for a particular court, then it should be heard only by a member of that court notwithstanding that a member of some other court has substantive jurisdiction over the offence and could hear it."
- **John Agricola v. Rashidi Juma** [1990] TLR 1

  "Lack of jurisdiction in the presiding magistrate is a fundamental defect that is not curable."
- **Giryago S/o Mwita v. R** [1978] LRT n.89

1.3.1: Place of suing

- Section 13 CPC – suit to be instituted in the court of the lowest grade competent to try it and in ascertaining jurisdiction it is the substantive claim which determines jurisdiction and not general damages – **M/S. Tanzania China Friendship v. Our Lady of Usambara Sisters** [2006] TLR 70

- **Note that** section 13 was amended by section 9 of the Written Laws (Miscellaneous Amendments) Act No. 2 of 2016 dated 18th July 2016 as regards to the place of suing, that is, the jurisdiction of the High Court and subordinate courts as follows:

"9. Amendment of section 13

The Principal Act is amended in section 13 by adding at the end of that section the following proviso:

"Provided that, the provisions of this section shall not be construed to oust the general jurisdiction of the High Court".

- Section 14 CPC – suit to be instituted where subject matter situate.

1.3.2: Original Jurisdiction

Sections 2 and 40(2) MCA Cap 1 R.E. 2002– a district court held by a civil magistrate, that is, a Resident Magistrate appointed by the Chief Justice) has original jurisdiction in the proceedings of a civil nature except where such jurisdiction is conferred by written law exclusively on some other court or courts.

1.3.3: Territorial Jurisdiction

- District Court, within the district in which it is established- Section 4 MCA.
- The Courts of Resident Magistrates- within such areas as are specified by the Chief Justice - Section 5 MCA.

1.3.4: Pecuniary Jurisdiction

Section 40 (2) MCA – the pecuniary jurisdiction is in respect of the recovery of possession of immovable property and where the subject matter can be estimated at a monetary value. The current position is that according to the provisions of section 22 of The Written Laws (Miscellaneous Amendments) Act, No 3 of 2016 which amended section 40 of the MCA is that the pecuniary jurisdiction of the District Courts and Courts of Resident

Magistrates is three hundred million for immovable property and two hundred millions for movable property.

1.3.5: Extended Jurisdiction

Section 45 MCA – empowers a resident magistrate vested with extended jurisdiction to determine appeals which are ordinarily heard by the High Court; and the High Court may transfer any such appeal to that Court – **Siodi Mindeu v. Kolombo Sotaite and Another** [2000] TLR 141.

RM with extended jurisdiction is empowered to hear appeals only; not applications – **Benego Mathayo and Two Others v. Republic**, Criminal Appeal No. 251 of 2006, CAT (unreported).

Section 8 of the Written Laws (Miscellaneous Amendments) Act No. 8 of 2018 amended section 41 of the Land Disputes Courts Act, Cap 216 by adding section 41A which vests appellate and revisional jurisdiction over land matters to Resident Magistrates with extended jurisdiction.

8. Addition of section 41A

The principal Act is amended by adding immediately after section 41 the following new section-

"41A. Extended jurisdiction

(1) Notwithstanding section 41, the Chief Justice may, after consultation with the Minister responsible for legal affairs and the Attorney General, by order published in the Gazette, vest any resident magistrate with the appellate or revisional jurisdiction ordinarily exercisable by the High Court under this Act.

(2) For the purpose of any appeal from or revision in the exercise of jurisdiction referred to under subsection (1), the resident magistrate with extended jurisdiction shall be deemed to be the judge of the High Court, and court presided over by him while exercising such jurisdiction shall be deemed to be the High Court.

(3) The High Court may direct that an appeal or revision instituted in the High Court be transferred to and be heard by a resident magistrate upon whom extended jurisdiction has been conferred by this section."

1.3.6: Supervisory Magistrate

Section 15 (1) MCA – The Chief Justice shall appoint for each region a resident magistrate -in-charge to perform the supervisory, and administrative functions of a resident magistrate –in-charge.

1.3.7: Honorary Magistrate

Section 16 MCA – The Minister may appoint any suitable person (usually a retired magistrate) as honorary magistrate who may from time to time be called upon to try specific cases or perform any judicial function.

1.3.8: Concurrent Jurisdiction

Section 63 (1) MCA – Where jurisdiction in respect of the same proceedings is conferred on different courts, each court shall have concurrent jurisdiction therein.

NB – Please note the proviso.

1.4: Parties to suits

Joinder of Plaintiffs – Order 1 Rule 1 – where any right to relief in respect of or arising out of the same transaction is alleged to exist jointly or severally – **Stround v. Lawson** (1898) 2 QB 44, **TPC v. Minister for Labour** [1996] TLR 303.

Joinder of defendants – Order 1 Rule 3 – where any right to relief or arising out of the same transaction or series of acts or transactions, etc. is alleged to exist whether jointly or severally, etc. – **Tan Gas Distributors v. Mohamed Salim Said and Two Others,** Civil Application No. 68 of 2011, CAT (unreported).

1.5: The Institution of suits

- Litigation-Court proceedings in civil matters. A litigant is one of the opposing parties in civil proceedings.
- Pleadings-Written or printed statements delivered by parties to one another so that questions of fact and law to be decided in a court action can be ascertained.

1.5.1: The plaint

- Order IV Rule 1 – suit to be commenced by plaint.
- Order VII Rule 1 – particulars to be contained in a plaint i.e. the name, description and place of residence of the plaintiff, the cause of action, etc. – **Juma Kadala v. Laurent Mnkande** [1983] TLR 103.
- Order VII Rule 11 – where a plaint discloses no cause of action the court is to reject it and not to dismiss it – **John M. Byombalirwa v.**

Agency Maritime International (Tanzania) Limited [1983] TLR1.

1.5.2: Representative suits

Order 1 Rule 8 – where there are numerous persons having the same interest one or more of such persons may, with permission of the court, sue or be sued on behalf of the others.

1.6: Issue and service of summons

- Summons- A document which is issued by the court requiring the attendance of a person named in the summons at court on specified date.
- Order V Rule 1 (a) - summons to appear.
- Order V Rule 1 (b) - summons to file a defence.
- Order V Rule 9 – service to be delivered to defendant or agent.
- Order V Rule 18 – serving officer to endorse time and manner of service.
- Order V Rule 20 – substituted service – where there is reason to believe that the defendant is keeping out of the way, service may be by affixation, etc.
- Order V Rule 21 – service by post.
- Order XXXV Rule 2(1)- Summons to apply for leave to appear and defend a summary suit

1.7: Written statement of defence and counter claim

1.7.1: Written statement of defence

- To be filed in either of two situations. Where the defendant has been served with a summons to appear (Order V Rule 1 (b)) or where he has been served with a summons to file written statement of defence and wishes to defend the suit – Order VIII Rule 1 (2).
- Written Statement of Defence to contain, *inter-alia*, facts on which defendant relies, the denials to be specific and not evasive– Order VIII Rules 2, 3, 4 and 5.

1.7.2: Counter claim (a cross-suit)

Order VIII Rule 9 – Where the defendant alleges that he has a claim or is entitled to relief or remedy against the plaintiff he may in his written statement of defence state particulars of the claim.

1.7.3: Extension of time

- **Order VIII Rule 1 (2)**

  The court may within twenty one days of expiration of the prescribed period grant extension for filing written statement of defence on application by the defendant.
- **Mic Tanzania Limited v. Hindow Cellular Phones Limited,** Civil Appeal No. 86 of 2007, CAT (unreported).

1.7.4: Preliminary objection

Should consist of a point of law which has been pleaded or which arises from the facts and which if argued may dispose of the suit, that is, lack of jurisdiction, limitation of time– **Karata Ernest and Others v. Attorney**

General, Civil Revision No. 10 of 2010 CAT (Full Bench) (unreported). A preliminary objection should be on a point of law and not one that has to be ascertained by facts – **Mukisa Biscuits Manufacturing Co. v. West End Distributors Limited** [1969] EA 696.

1.7.5: Res judicata

Section 9 CPC – no court shall proceed with trial of a suit in which the matter in issue is also directly and substantially in issue in a former suit between the same parties– **Stephen Masatu Wassira v. Joseph Sinde Warioba and AG** [1999] TLR 334, **Gerard Chuchuba v. Rector, Itaga Seminary** [2002] TLR 213.

1.7.6: Amendment of pleadings

- Order VI Rule 16 – the court may, at any stage of the proceedings order, inter alia, amendment.
- Amendments before hearing should be freely allowed if they could be made without injustice to the other side and there is no injustice if the other side could be compensated by costs - **George M. Shambwe v. AG and Another** [1996] TLR 334.
- Order VI Rule 17 – the court may at any stage of the proceedings allow either party to alter or amend pleadings.

1.8: Appearance of parties and consequences of non appearance

- Order IX Rule 1 – parties to appear on day fixed in summons or on day fixed for hearing.
- Order IX Rule 2 – dismissal of suit where summons not served in consequence of plaintiff's failure to pay costs.

- Order IX Rule 3 – suit may be dismissed where neither party appears.
- Order IX Rule 6 – procedure when only plaintiff appears.
- Order IX Rule 8 – procedure when only defendant appears.
- **E.A. Posts and Telecommunications Corporation v. M/S Terrazo Paviors** [1973] LRT n.58
- **Julius Petro v. Cosmas Raphael** [1983] TLR 346

1.9: Ex-parte hearing and judgment

- Where the defendant does not appear and there is proof that he was duly served the court may proceed *ex-parte* and upon *ex-parte* proof pronounce judgment – **Ignazio Messina and Another v. Willow Investments and Another,** Civil Appeal No. 105 of 1998, CAT (unreported).
- Ex parte judgment is a judgment given when there is no appearance by the party against whom it is given on the **first day of hearing.** If the suit is heard in the presence of both parties and then at the middle of the trial the defendant defaults to appear, the trial which proceeds by the plaintiff alone is not *ex parte* and the judgment that will be passed will not be *ex parte* judgment – **Moshi Textile Mills Ltd v. Voest** [1975] LRT n.17.
- Order IX Rule 13 (1) – *Ex-parte* Judgment may be set aside upon sufficient cause.
- Order IX Rule 13 (2) – Application for setting aside *ex-parte* judgment to be made within twenty one days.

1.10: Judgment on admission

- It is a procedure whereby a party is given the opportunity to admit matters which he does not dispute thereby saving time and costs.
- Order XII Rules 1, 2, 3 of Civil Procedure Code, Cap 33 – admission is usually given in writing – **NBC and Another v. Ahmed Abderhaman** [1997] TLR 259.
- Order XII Rule 4 of Civil Procedure Code, Cap 33 – the court may give judgment on admission upon application by any party.

1.11: Temporary injunction, declaratory orders and interlocutory orders

- Order XXXVII

1.11.1: Temporary Injunction

- Rule 1 – power to grant temporary injunction. To be granted only where there is a suit. **Note:** Provided that an order granting a temporary injunction shall not be made against the Government, but the court may in lieu thereof make an order declaratory of the rights of the parties.
- Rule 3 – may be extended from time to time for a period not exceeding one year – **Knitwear v. Ismail** [1989] TLR 48.
- Rule 4 – notice must be given to opposite party - **Augustine Lyatonga Mrema and Two Others v. Abdallah Majengo and Two Others** [2001] TLR 67.
- Notice to be dispensed with where it will cause undue delay or where it will defeat the object of the application – **Golcher v. General Manager M. C. M** [1987] TLR 78.

1.11.2: Interlocutory order

- An order that is usually made in the course of proceedings before the suit is finally determined – Order XXXVII Rules 7, 8 and 10.
- The Order is not appealable unless it has the effect of finally determining the suit – Act No. 25 of 2002, **Managing Director, Souza Motors Limited v. Riaz Gulamali and Another** [2001] TLR 405.

1.12: Pre - trial scheduling conference and final pre –trial conference

- Parties at this stage may be involved in an informal conference between them and the court to try to reach a settlement or clarify any matters in dispute before the full hearing.
- Please note that under the scheme of Orders VIIIA and VIIIB of the CPC, Cap 33 there are two conferences which must be conducted after parties complete their pleadings i.e. First Pre - trial settlement and scheduling conference and Final Pre-Trial settlement and scheduling conference.
- Order VIIIA

  Rule 1 – suits in which the rules do not apply.

  Rule 3 (1) – scheduling to be held within 21 days. To be attended by parties.

  Rule 3 (3) – speed track of cases -

  (a) 10 months from commencement of case (Speed Track One)

  (b) 12 months from commencement of case (Speed Track Two)

(c) Not exceeding 14 months (Speed Track Three)

(d) 24 months (Speed Track Four)

Rule 4 – once a scheduling order is made no departure is allowed unless it is necessary in the interest of justice.

Order VIIIB – final Pre-trial settlement and scheduling conference.

Rule 1 – Suits in which the rules do not apply.

Rule 3 (4) – Held where an amicable settlement of the case is not reached.

- On the issue of expiry of speed track and due regard to the interest of justice see **Nazira Kamru v. Mic Tanzania Limited**, Civil Appeal No. 111 of 2015, CAT (unreported).

1.13: Disqualification/recusal of a magistrate

- "Confidence in the judiciary does not require a belief that all judicial decisions are wise, or all judicial behavior impeccable,…..What it requires, however, is a satisfaction that the justice system is based upon values of independence, impartiality, integrity, and professionalism and that, within the limits of ordinary human frailty, the system pursues those values faithfully."
- It is not automatic. There must be good cause for recusal i.e. where a fair minded and informed observer is likely to conclude that there is a possibility that the court is/was biased, if there is evidence of bad blood between the litigant and the judge or magistrate concerned, if the judge or magistrate has close relationship with the adversary party or one of them.
- **Registered Trustees of Social Action Trust Fund and Another v. Happy Sausages Limited and Others** [2004] TLR 264,

Laurean G. Rugaimukamu v. Inspector General of Police and AG, Civil Appeal No. 13 of 1999 CAT (unreported) and **Jayantkumar Chandubhai Patel and Three Others v. Attorney General and Two Others,** Civil Appeal No. 59 of 2012, CAT (unreported).

- **Attorney General of the Republic of Kenya v. Prof. Anyang' Nyongo and 10 Others,** Civil Application No. 5 of 2007 EACJ [2007]1 EA 12;

  "In an application for a judge to recuse himself from sitting in a Coram as from sitting as a single judge, the procedure practiced in the East Africa Partner States, and which this court would encourage litigants before it to follow, is that counsel for the applicant seeks a meeting in chambers with the judge or judges in the presence of (the) opponent. The grounds for recusal are put to the judge who would be given an opportunity, if sought, to respond to them. In the event of recusal being refused by the judge, the applicant would, if so advised move the application in open court."

  The Court proceeded:

  "The rationale for and benefit from that procedure is obvious, namely apart from anything else, in practical terms, it helps the litigant to avoid rushing to court at the risk of maligning the integrity of the judge or judges and of the court as a whole, without having the full facts. Where a recusal application comes before a court constituted by several judges, it appears to us that, subject to the judge whose recusal is sought giving his individual

decision on the matter, all the judges constituting the Coram for the case have (a) collective duty to determine if there is sufficient ground for the judge to recuse himself from further participation in the case."

- Part C of Rule 2 of the Code of Conduct for Judicial Officers of Tanzania also lists down instances where a judge or magistrate may disqualify himself from hearing a case.

1.14: Framing of issues

Order XIV

- Rule 1 (5) – To be framed and recorded at the first hearing.
- Rule 2 – Issues of law, if any, must be determined first.
- Omission to frame issues is not fatal unless it results in a failure to decide properly the point in question amounting to a failure of justice-**Tanzania Sand and Stone Quarries v. Omoni Ebi** [1972] HCD n. 219
- **Sheikh Ahmed Said v. The Registered Trustees of Manyema Masjid** [2005] TLR 61

  "It is an elementary principle of pleading that each issue framed should be definitely resolved one way or the other. It is necessary for a trial court to make a specific finding on each and every issue framed in a case, even where some of the issues cover the same aspect."

1.15: Adjournments

- To adjourn is to suspend a court hearing, usually to a future specified day, but sometimes without setting a future date (*sine die*).

Order XVII

- Rule 1 – an adjournment is to be granted only if there is good cause – **Shabani Mbega and Another v. Karadha Company Limited and Another** [1975] TLR 13.
- Rule 1 (2) – once hearing has commenced it **shall** continue from day to day until witnesses have been examined. If an adjournment is necessary **reasons** for adjournment **must** be recorded.
- Rule 4 – notice to be issued to parties where the suit was adjourned generally (*sine die*) if no application is made within twelve months of the last adjournment.
- Adjournment – is at the discretion of the court and must be exercised judiciously – **Arcado Ntagazwa v. Bunyambo** [1997] TLR 242, **CRDB v. Filton** [1993] TLR 284.

1.16: Transfer of cases

MCA

- Section 47 (1), (2), (3), (4), (5), (6) and (7) Transfer from Primary Courts.
- Section 48 – transfer to Primary Courts.
- **Kamgenyi v. Musiru and Another** [1968] EA. 43
- The power to transfer cases will be exercised;

(a) where it appears that the circumstances or gravity of the proceedings make it desirable that the proceeding should be transferred; or

(b) where there is reasonable cause to believe that there would be failure of justice were the proceedings to be heard in the primary court; or

(c) where the subject matter of the proceedings arose outside the local limits of the primary court's jurisdiction or is not within its jurisdiction, or in any case in which the law applicable is a Customary law which is not a Customary law prevailing within such primary court; or

(d) where the proceedings seek to establish or enforce a right or remedy under Customary law or Islamic law, or are an application for the appointment of an administrator of the estate of the deceased person, and the court is satisfied that the law applicable is neither Customary law nor Islamic law, or that the question whether or not Customary law or Islamic law is applicable cannot be determined without hearing or determining the proceedings.

1.17: Hearing and examination of witnesses

Order XVIII

- Rule 1 – Plaintiff has the right to begin unless the defendant admits the facts alleged.
- Rule 5 – Evidence to be taken down, *inter-alia,* in a narrative.
- Rule 8 – The court may record material remarks regarding a witness while under examination.

NB: An analogy may be drawn here to Section 212 of the CPA Cap 20 where remarks about the demeanour of a witness are supposed to be recorded whilst under examination. Also see **Alfayo Valentino v. Republic,** Criminal Appeal No. 92 of 2006, CAT (unreported).

- As a general rule witnesses must be examined in open court and on oath or affirmation.

1.18: Arrest and attachment before judgment

Order XXXVI

- Rule 1 – The court may issue a warrant of arrest where it is satisfied by affidavit or otherwise that the defendant has absconded, is about to abscond, has disposed of or removed property from the jurisdiction – **Fernandes v. Commercial Bank of Africa Limited** [1969] EA 482.
- Rule 6 – Circumstances when attachment before Judgment may be ordered, that is, where defendant is about to dispose of property– **Mtale v. January Kapembwa** [1976] LRT n.7.

1.19: Judgment

Order XX

- Rule 1 – To be pronounced in open court.
- Rule 4 – Contents of a Judgment, that is, a concise statement of the case, points for determination and the reasons thereof.
- **Nkungu v. Mohamed** [1984] TLR 46
- **Stanslaus Rugaba Kazaura and AG v. Phares Kabuye** [1982] TLR 338

1.20: Decree

- Section 3 CPC – the formal expression of an adjudication which conclusively determines the rights of the parties, etc.
- Order XX

  Rule 6 – must agree with the Judgment.

  Rule 7 – must bear the date on which the judgment was pronounced and must be signed – **Uniafrico and Two Others v. Exim Bank (Ltd),** Civil Appeal No. 300 of 2006, CAT (unreported), **Dr. Gabriel Michael Muhagama v. Salim Abas Salim and Two Others** [2006] TLR 336.

1.21: Award of Interest

- Section 29 CPC – Chief Justice may make rules prescribing interest.
- Order XX Rule 21 – Rate of interest is limited between seven per centum and twelve per centum – **Njoro Furniture v. TANESCO** [1995] TLR 205, **Rev**. **Christopher Mtikila v. AG** [2004] TLR 172.
- Interest on general damages is only due after the delivery of judgment because then the principal amount due is known – **Said Kibwana and General Tyre E.A. Ltd v. Rose Jumbe** [1993] TLR 175.
- Interest prior to the filing of the suit is a matter of substantive law and it must be specifically pleaded – **F. Andrew v. Kamyn Industries (T) Ltd** [1986] TLR 31.

1.22: Costs

CPC

- Section 30 (1), (2) and (3) – costs are at the discretion of the court.
- The general rule is that costs follow the event. Under subsection (2) of section 30 the court has to state reasons in writing where it directs costs not to follow the event.
- See also the case of **Vijay Shantilal Chohan v. Abdallah Shakule Halday and Another**, Civil Appeal No. 105 of 2013, CAT at Dar es Salaam (unreported).
- In **Nkaile Tozo v. Phillimon Musa Mwashilanga** [2002] TLR 276 it was held that:

  > The granting of costs to the parties under Order 39, rule 1(1) of the Civil Procedure Code, is not an automatic award to the successful party but is in the discretion of the court. Although this discretion is a very wide one, like in all matters in which Courts have been vested with discretion, the discretion in awarding or denying a party his costs must be exercised judicially.

1.23: Stay of execution

Order XXXIX

- Rule 5 (1) and (2) - stay of execution by appellate court or by the court which passed the decree.
- Rule 5 (3) – grounds for stay of execution – **TANESCO v. Independent Power Tanzania Limited (IPTL) and Others** [2000] TLR 324.

1.24: Execution of decrees and orders

Order XXI

- Rule 1 - usually an application for execution is made in writing.
- Rule 10 (2) – Particulars to be contained in an application for execution.
- Mode of execution depends on the type and nature of decree i.e. attachment and sale; detention as a civil prisoner.
- Rule 20 – Where an application is made more than one year after the date of the decree or against the legal representative of a party to the decree the court shall issue notice to the person against whom execution is applied to show cause why the decree should not be executed against him.

1.25: The Court Brokers and Process Servers (Appointments, Remuneration and Discipline) Rules, 2017 – GN No. 363 of 2017

- It is important for magistrates to read the above Rules in order to appreciate the role of court brokers in execution of decrees.

  Read particularly rule 4 on the requirement by the court broker to give fourteen days notice before execution and also on the requirement by the court broker to submit to court an inventory of attached movable property.
- It is also important for magistrates to know that execution is a legal function; so execution must be conducted according to law.

1.26: Objection proceedings

Order XXI Rules 57

- Objection (usually by a third party) must be investigated in the same manner as if the objector was a party to the suit. So, the party need not file a fresh suit – **K. Mussa v. Mchodo** [1984] TLR 348, **Nyanza Distributors Co**. **v. Geita General Stores** [1977] LRT 2.

1.27: Appeals

- Section 20 (1) (b) – MCA - in all civil cases originating in primary courts.
- Section 20 (3) – The Ward Tribunals Act [CAP 206] – Appeals originating in the Ward Tribunal but on points of law only.
- Section 21 (1) (a) MCA – In its appellate jurisdiction, a District Court may direct a primary court to take additional evidence.
- In dealing with appeals originating in primary courts the applicable law is the Civil Procedure (Appeals in Proceedings Originating in Primary Courts) Rules – GN 312 of 1964. The CPC does not apply – **Julius Petro v. Cosmas Raphael** [1983] TLR 346, **Agness Simbambili Gabba v. Samson Gabba**, Civil Appeal No. 20 of 2008, CAT (unreported).
- Under Rule 2 of GN 312 of 1964 – a petition of appeal includes records of the grounds of appeal where the same have been stated orally and recorded by the district court under paragraph (b) of subsection (4) of section 20 of MCA.

- Under the proviso to Rule 3 of GN 312 OF 1964 – in an application for leave to appeal out of time the district court may permit the applicant to state his reasons orally and shall record the same.

1.28: Review

(a) Order XLII

- Rule 1 – To apply for review on discovery of new and important matter, on account of some mistake or error apparent on the face of the record-**James Kabalo Mapalala v. British Broadcasting Corporation** [2004] TLR 143, **NBC v. Cosmas M. Mkoji [1986]** TLR 127, **Tanzania Transcontinental Trading Co. v. Design Partnership** [1999] TLR 258.
- Rule 2 – Application to be made to magistrate who passed the decree.

(b) Section 78 CPC

Subject to any conditions, any person considering himself aggrieved by a decree or order, may apply for a review of judgment to the court which passed the decree or order.

1.29: Reference (case stated)

Section 77 CPC – subject to such conditions and limitations ...any court may state a case and refer the same for the opinion of the High Court.

1.30: Revision

- The District Court under section 22 MCA – has revisional jurisdiction over a primary court that is within its jurisdiction.

- The District Court may call for record to satisfy itself on the legality or otherwise of decision made by a primary court.

CHAPTER TWO

CRIMINAL LAW, PROCEDURE AND PRACTICE

2.0: Jurisdiction of courts

(a) **Sections 180 and 181 CPA Cap 20 R.E 2002**

Offences are to be inquired into and tried by a court within the local limits whose jurisdiction it was committed – **Makwizi Msuko and Two Others v. Republic,** Criminal Appeal No. 8 of 2001, CAT (unreported).

(b) In criminal cases the district court has no review jurisdiction over its own decisions.

(c) Section 173 CPA empowers the Minister to invest any resident magistrate with power to try offences ordinarily triable by the High Court – **Samson Buruna @ Sibore s/o Buruna v. Republic,** Criminal Appeal No. 138 of 2002, CAT (unreported).

(d) Section 256A (1) CPA – The High Court may direct that the taking of a plea and trial be transferred to and conducted by a resident magistrate vested with extended jurisdiction – See also **Buruna's** case (*supra*).

(e) Sections 20 (1) (a) and (2) and 21 MCA – power of the district court in exercise of appellate jurisdiction over proceedings originating in a primary court. In exercise of the powers it may order additional evidence, quash proceedings.

(f) Section 22 – revisional jurisdiction – a district court may call for and examine the record of any proceedings in the primary court.

2.1: Summary Jurisdiction

- Section 213 CPA Cap 20 (summary jurisdiction) – where the court may deal with a case without taking evidence, particularly in minor offences.
- Section 213 CPA Cap 20 provides:

"213. Procedure in case of minor offences

(1) Notwithstanding anything contained in this Act every magistrate may, if he thinks fit, try any of the offences mentioned in subsection (1) without recording the evidence as hereinbefore provided, but in any such case he shall enter in such form as the High Court may direct, the following particulars–

(a) the serial number;

(b) the date of the commission of the offence;

(c) the date of the complaint;

(d) the name of the complainant;

(e) the name, parentage and residence of the accused;

(f) the offence complained of and the offence (if any) proved, and, in cases under paragraph (c), (d) or (e) of subsection (2), the value of the property in respect of which the offence has been committed;

(g) the plea of the accused;

(h) the finding and, where evidence has been taken, a judgment embodying the substance of such evidence;

(i) the sentence or other final order; and

(j) the date on which the proceedings terminated.

(2) The offences referred to in subsection (1) are as follows–

(a) offences punishable with imprisonment for a term not exceeding six months or a fine not exceeding one thousand shillings;

(b) common assault under section 240 of the Penal Code;

(c) theft under Chapter XXVII of the Penal Code where the value of the property stolen does not exceed one hundred shillings;

(d) receiving or retaining stolen property under Chapter XXXII of the Penal Code where the value of such property does not exceed one hundred shillings;

(e) malicious injury to property where the value of such property does not exceed one hundred shillings;

(f) aiding, abetting, counselling or procuring the commission of any of offences referred to in this subsection;

(g) attempting to commit any of the offences referred to in this subsection.

(h) any other offence which the Chief Justice may, by order published in the Gazette, direct to be tried in accordance with the provisions of this section.

(3) When in the course of a trial under the provisions of this section it appears to the magistrate that the case is of a character which renders it undesirable that it should be so tried, the magistrate shall recall any witnesses and proceed to rehear the case in the manner otherwise provided by this Part.

(4) No sentence of imprisonment for a term exceeding six months or of a fine of an amount exceeding one thousand shillings shall be imposed in the case of any conviction under this section."

2.2: Accused and his plea

- Section 228 CPA **–** Accused to be called upon to plead. If he pleads guilty the admission to be **recorded** as nearly as possible in the words he uses. In a plea of guilty the procedure that follows thereafter is as stated in **Clement Pancras v. Republic,** Criminal Appeal No. 321 of 2013, CAT (unreported).
- Section 229 CPA **–** If he pleads "not guilty" – prosecution to open its case against the accused.
- Where the charge is substituted it is still necessary to take plea – **Joseph Masaganya v. Republic,** Criminal Appeal No. 77 of 2009, CAT (unreported).
- Where no plea is taken the trial is a nullity – **Thuway Akonaay v. Republic** [1987] TLR 92.
- In any case in which a conviction is likely to proceed on a plea of guilty every constituent of the charge should be explained to the accused; he should be required to admit or deny every constituent– **Rex v. Yonasani Egalu and Others** [1942] 9 EACA 65, **R v. M/S SP Construction** [1981] TLR 6, **John Faya v. Republic**, Criminal Appeal No. 198 of 2007, CAT (unreported).
- Section 132 CPA – Every charge or information should contain a statement of the specific offence or offences with particulars necessary for giving reasonable information as to the nature of the

offence charged – **Mussa Mwaikunda v. Republic** [2006] TLR 387, **Isidori Patrice v. Republic**, Criminal Appeal No. 224 of 2007, CAT (unreported).

2.3: Bail

- Section 148 CPA – Bail pending trial may be granted. Amount of bail to be fixed with due regard to gravity of the offence and other circumstances of the case.
- Accused's right to bail – **Daudi Pete v. R** [1993] TLR 22.
- Subordinate courts are empowered to admit accused persons before them to bail for all bailable offences, including those triable by the High Court, save those specifically enumerated under section 148 (5) (a) thereof, for which no bail is grantable by any court – **Republic v. Dodoli Kapufi and Another,** Criminal Revision No. 1 of 2008 c/f No. 2 of 2008, CAT (unreported).
- In considering whether or not to release an accused person on bail, the court should consider whether the accused will be there to take his trial or abscond and so defeat the interests of justice. **Republic v. Kassam** (1971)HCD n. 315, **Mwita v. Republic** (1971) HCD n.122 and **Asoka v. Republic** (1971) HCD n.192

2.4: Preliminary hearing

- Main aim – to expedite trial and minimize costs/expenses.
- Sections 192 – 194 CPA **–** A stage in the trial where matters not in dispute are determined. Any fact or document agreed shall be deemed to have been admitted.

- Also see The Accelerated Trial and Disposal of Cases Rules, 1988 – GN 192 of 1988.
- Compliance with every stage of this procedure, particularly subsection (3) of section 192 thereof, is mandatory – **Libert Hubert v. R,** Criminal Appeal No. 28 of 1999, CAT (unreported), **Efraim Lutambi v. R** [2000] TLR 265.

2.4.1: Alibi

- Section 194 (4) (5) and (6) CPA – Accused to give notice to the court and the prosecution of his intention to rely on *alibi*. If no notice is given he shall furnish particulars before prosecution case is closed. If no particulars are furnished the court may accord no weight to the defence – **Ali Salehe Msutu v. R** [1980] TLR 1, **Lisabanya Siyantemi v. R** [1980] TLR 275.
- Where a defence of *alibi* is given after the prosecution has closed its case without any prior notice that such a defence would be relied upon, at least three things are important, thus: - The trial court is not authorized to treat the defence of *alibi* like it was never made, the trial court has to take cognizance of the defence, and it may exercise its discretion to accord no weight to the defence – **Mwita Mhere and Ibrahim v. Republic** [2005] TLR 107.

2.5: The criminal trial

- If the case is not disposed of at the preliminary stages it will proceed to a full trial on the constitutional presumption that the accused is innocent until proved guilty. Conviction, if any, should be based on

the strength of the prosecution case and not on the weakness of the defence case. The usual principle is proof beyond reasonable doubt.

- In handing down its decision it is a serious misdirection by the court to deal with the prosecution evidence on its own and arrive at a conclusion that it was true and credible without considering the defence evidence – **Hussein Iddi and Another v. Republic** [1986] TLR 166.
- Section 193 CPA – A person charged with a warrant offence may plead guilty without court appearance.

2.5.1: Adjournments

Section 225 CPA

- Note subsections (1), (2), (4), (5) and (6) in particular.
- Breach which does not affect the substance of the trial does not render the trial a nullity – **John Joseph Onenge and Julius Senene v. R** [1993] TLR 131.

Section 226 (2) CPA

- When a court convicts an accused person in *absentia* it should exercise the discretion under the subsection in order to afford the accused person the opportunity to be heard on why he was absent and on whether he had a probable defence in the merit – **Lemonyo Lenuna and Sekitoni Lenuna v. Republic** [1994] TLR 54, **Marwa Mahende v. Republic** [1998] TLR 249.

2.6: Judgment and conviction

- Section 312 CPA – contents of a judgment.
- Section 235 **–** power of the court to convict or acquit

  NB: Please note the use of the word "shall."
- Failure to convict is fatal – **Shabani Iddi Jololo and Others v. Republic**, Criminal Appeal No. 200 of 2006, **Khamis Rashid Shaban v. Director of Public Prosecutions**, Criminal Appeal No 184 of 2012 (both CAT and unreported).
- In the event of an acquittal the court must require the accused to give his permanent address – sub section (2) of section 235.

2.6.1: Sentence

- Section 235 (1) - court to pass sentence after convicting.
- Please note other provisions in dealing with offenders which are important but are rarely used, these are;

  Section 337 - power to release upon probation.

  Section 339 A – power to release on community service.

  Section 341 – power to subject to police supervision.
- Except for offences in which minimum mandatory sentences are prescribed, sentencing is at the discretion of the court. The principle is that an appellate court should not interfere with the discretion unless the trial court acted upon some wrong principles, the sentence is manifestly inadequate or manifestly harsh, among others – **Ami Omary @ Senga and Three Others v. R,** Criminal Appeal No. 233 of 2013, CAT (unreported), **Bernadeta v. R** [1992] TLR 97, **R v. Mohamed Ali Jamal** [1948] 15 EACA 126.

- Section 171 (1) – A district court may commit an offender to the High court for sentencing.

2.6.2: Disposal of exhibits

- An Exhibit is a document or thing shown to a witness when giving evidence produced for inspection to the court or referred in the affidavit.
- Sections 353 – 356 CPA

  Note particularly subsection (1) of section 353 - property unclaimed for 12 months may be sold or destroyed– **Theobald Charles Kessy and Vicent Mwaikambo v. Republic** [2000] TLR 186.
- Under subsection (2) – property may be sold or destroyed at any stage of the proceedings if it is subject to speedy decay.
- The court has no power to make an order for disposal of goods that are not tendered in court as exhibits – **R v. Athumani Rutaginga and Another** (1975) LRT n.5.

2.7: General principles

2.7.1: Accessory after the fact

- Section 387 (1) of the Penal Code– A person who receives or assists to enable a person to escape punishment.

2. 7.2: Issue estoppel

- The doctrine applies in criminal cases as well – **Issa Athuman Tojo v. Republic** [2003] TLR 199.

2.7.3: Aiding and abetting

- Section 22 (1) (c) of the Penal Code – a person who aids or abets another in committing the offence.

- There are three important elements to prove in a charge of aiding and abetting:-

  (i) That another person committed the underlying crime;

  (ii) The person charged had knowledge of the crime or the principal's intent; and

  (iii) The accused person provided some form of assistance to the principal offender.
- **Damiano Petro and Jackson Abrahamu v. R** [1980] TLR 260 – mere presence at the scene of crime is not enough to constitute a person an aider and abettor; the person must participate in the crime to some extent.

2.7.4: Autrefois acquit and autrefois convict

- Section 137 CPA – A person once tried and convicted or acquitted while such conviction or acquittal has not been reversed is not liable to be tried again on the same facts for the same offence.
- The pleas of *autrefois acquit* or *autrefois convict* can be raised at any time before the closure of the defence case – **Maduhu Masele v. R** [1991] TLR 143.
- Where *autrefois acquit* has been pleaded it shall first be tried to find out whether it is true or not – **The Director of Public Prosecutions v. Christopher Kikubwa and Another** [1980] TLR 162.

2.7.5: Common intention

- Section 23 of the Penal Code Cap 16 R.E. 2002. For the doctrine to apply two or more persons must form a common intention to commit

an unlawful act – **Shija Luyeko v. R** [2004] TLR 254, **Godfrey James Ihuya and Others v. Republic** [1980] TLR 197, **Mathias Mhyemi and Another v. Republic** [1980] TLR 290.

- Also, for the doctrine to apply the important issue is the degree of participation by each one of them – **Sovelwa Mwayonga v. Republic**, Criminal Appeal No. 84 of 1992 c/f **The Director of Public Prosecutions v. Daudi Mwayonga**, Criminal Appeal No. 155 of 1994, CAT (unreported).

2.7.6: Recent possession

- The doctrine is a rule of evidence which enables the court to draw an inference that a person in possession of the goods soon after the theft is the actual thief or a guilty receiver – **Jeremiah Shemweta v. R** [1985] TLR 228.
- The doctrine is based on a presumption created under section 122 of the Evidence Act Cap 6 R.E. 2002.
- Possession of an article which is proved to be directly connected with a crime after the commission of the crime may, in certain circumstances, lead to the irresistible inference that the possessor of the article participated in the crime – **Andrea Obonyo v. R** [1962] EA 542.
- A number of factors have to be considered before any inference can be said to be irresistible. Among the factors are the length of time between the commission of the crime and the date on which the article is found in possession of the accused; the circumstances of events between those dates; the nature of the article and the

explanation or lack of it by the accused for such possession – **Rajabu v. Republic** [1970] EA 395 at page 398.

- The doctrine can extend to any charge, however penal – **Twaha Elias Mwandungu v. Republic,** Criminal Appeal No. 80 of 1995, CAT (unreported).
- For the doctrine to apply there should be a nexus between the property stolen and the person found in possession of the property, the property must have a reference to the charge laid against the accused, there must be positive identification of the property as being the property stolen from the victim– **Joseph Daudi and Another v. Republic,** Criminal Appeal No. 447 of 2007, CAT (unreported).

2.7.7: Receiving stolen property

- Section 311 Penal Code – A person who receives or retains any chattel, or any other thing knowing that it was wrongfully or unlawfully taken– **Pascal Mwita and Two Others v. Republic** [1993] TLR 295.
- Where there is no direct proof of theft or of receiving goods knowing them to have been stolen, the ordinary rule of circumstantial evidence must be applied, namely, that the circumstances must be such as to convince any reasonable person that no other conclusion was reasonably possible – **Mwangi Njoroge v. Republic** [1963] EA 624.
- Where property is entrusted to a person and he converts it to his own use and disposes of it, whether or not the intention to do so he conceived at or after the receipt of the property, as soon as there is

an overt act showing a departure from the instructions in regard to it, the offence of theft is complete and the foundation for a case of receiving with guilty knowledge is laid – **R v. Nanji Sunderji** 2 EACA 130.

2.7.8: Identification parades

- Identification parades are held in order to ascertain whether a suspect is in fact the person who committed the crime.
- In Tanzania, identification parade procedures are regulated by section 60 CPA and section 38 of the Police Force and Auxiliary Services Act [CAP 322].
- Police General Order No. 232 provides rules/procedures on how to conduct identification parades.
- The rules/procedures were mainly derived from the celebrated Ugandan case of **Republic v. Mwango Manaa** [1936] 18 EACA 29 - See also **Republic v. XC 7535 Venance Mbuta** [2002] TLR 48.
- If any of the rules/procedures is not complied with the identification parade becomes of little value – **Raymond Francis v. Republic** [1994] TLR 100, **Godfrey Richard v. Republic**, Criminal Appeal No. 365 of 2008, CAT (unreported).

2.8: Appeals

Sections 359 – 363 CPA

- Section 359 (1) – Appeals lie to the High Court.
- Section 360 – No appeal on a plea of guilty. But a person can appeal if the plea was imperfect, ambiguous or unfinished– **Lawrence Mpinga v. Republic** [1983] TLR 166.

- Section 361 – Period of limitation within which to appeal.
- Section 362 – Appeal to be in the form of a petition in writing.

2.8.1: The process and procedure

Section 20 of the MCA regulates appeals from the Primary Courts to the District Courts.

2.9: Revision

Section 22 of the MCA provides for Revisional Jurisdictional of the District Court on matters originating from the Primary Courts.

2.9.1: Power of the District and Resident Magistrates Court on Revision

Section 22 (2) of the MCA provides:

> "In the exercise of its revisional jurisdiction, a district court shall have all the powers conferred upon a district court in the exercise of its appellate jurisdiction including the power to substitute a conviction, or a conviction and sentence, for an acquittal; and the provisions of paragraph (b) of subsection (1) of section 21 shall apply in relation to an order quashing proceedings and ordering a rehearing which is made in the exercise of a district court's revisional jurisdiction as they apply in relation to any such order made in the exercise of its appellate jurisdiction."

2.10: Committal Proceedings in cases triable by the High Court Sections 243 to 249 CPA

- Power to commit for trial and committal proceedings, respectively.
- Section 243 CPA-Power to commit for trial.

- Section 244 CPA- Court to hold Committal Proceedings.
- Section 246 CPA-Committal for trial by court.
- Section 247 CPA- A list of prosecutions and defence witnesses.
- Section 249 CPA- Accused entitled to copy of committal proceedings.

2. 11: Economic offences CAP 200

2.11.1: Jurisdiction

- Section 3 as amended by the Written Laws (Miscellaneous Amendment) Act, 2016 (Act No 3 of 2016) – these offences are triable by the Corruption and Economic Crimes Division of the High Court.
- In circumstances falling under section 22 (1), (3), (4), (5) and (6) thereto a district court may try these offences.
- Section 12 on Power to refer matters to other courts provides:

  (1) Where the Court decides that an alleged economic offence is in fact not an economic offence which it has jurisdiction to try, it shall order that proceedings in respect of that offence be instituted in such court as it may deem proper to order, but shall make no order in relation to the accused person save for bail if an application is made in that behalf.

  (2) Where the Court decides that it has no jurisdiction and makes an order under subsection (1), the accused shall be deemed to have been discharged for the purposes of proceedings before the Court, but the discharge shall not operate to preclude the arrest of the person for the purposes of proceedings in relation to him before an appropriate competent court in respect of the same facts on which he was brought before the Court.

(3) The Director of Public Prosecutions or any State Attorney duly authorised by him, may, in each case in which he deems it necessary or appropriate in the public interest, by certificate under his hand, order that any case involving an offence triable by the Court under this Act be tried by such court subordinate to the High Court as he may specify in the certificate.

(4) The Director of Public Prosecutions or any State Attorney duly authorised by him, may, in each case in which he deems it necessary or appropriate in the public interest, by certificate under his hand order that any case instituted or to be instituted before a court subordinate to the High Court and which involves a non-economic offence or both an economic offence and a non-economic offence, be instituted in the Court. [ss. (3A)]

(5) Where a certificate is issued under subsection (3), it shall be lodged in the court concerned, and shall constitute full authority for, and confer jurisdiction upon, the court in which it is lodged to try the case in question. [ss. (4)]

(6) Where a person tried by a court subordinate to the High Court pursuant to the preceding provisions of this section is found guilty by that court, the court shall impose on that person the sentence provided for by this Act. [ss. (5)]

2.11.2: Bail

- Section 36 – instances when bail may or may not be granted.
- Subordinate courts are only empowered to determine bail applications in economic cases if the value of the subject matter

involved does not exceed Ten Million Shillings. In all other cases, where the value exceeds Ten Million Shillings, bail application is to be made to the Corruption and Economic Crimes Division of the High Court.

- In most of the cases where bail is granted by the High Court, subject to bail conditions set by that Court, approval of sureties and execution of bail bonds is done before the subordinate courts.
- Apart from there being a list of non- bailable offences there are other restrictions to bail for bailable offences. Certificate by the Director of Public Prosecutions and the requirement to deposit cash or other property equivalent to half the amount of money or the property involved, are some of those restrictions. See section 148 (4) and (5) (a) to (e) of the Criminal Procedure Act Cap 20 as well as sections 2, 28 to 30 and section 36 (5) (a) of the Economic and Organised Crime Control Act Cap 200.
- Section 36 (4) provides:

  (4) The Court shall not admit any person to bail if–

  (a) it appears to it that the accused person has previously been sentenced to imprisonment for a term exceeding three years;

  (b) it appears to it that the accused person has previously been granted bail by a court and failed to comply with the conditions of the bail or absconded;

  (c) the accused person is charged with an economic offence alleged to have been committed while he was released on bail by a court of law;

(d) it appears to the court that it is necessary that the accused person be kept in custody for his own protection or safety;

(e) the offence for which the person is charged involves property whose value exceeds ten million shillings, unless that person pays cash deposit equivalent to half the value of the property, and the rest is secured by execution of a bond;

(f) if he is charged with an offence under the Dangerous Drugs Act.

- For the recent position see the cases of **Attorney General v. Jeremiah Mtobesya**, Civil Appeal No. 65 of 2016, CAT (unreported) and **Emmanuel Simforian Massawe v. The Republic**, Criminal Appeal No. 252 of 2016, CAT (unreported).

2.11.3: Consent of the DPP

- Section 26 (1) and (2) – no trial without the consent of the DPP save that he may by notice in the Gazette specify offences whose power of consent may be exercised by officers subordinate to him.
- The consent of the DPP must be given before any trial involving an economic offence; the DPP cannot consent retrospectively – **Paulo Matheo v. Republic** [1995] TLR 144, **Abdulswamadu Azizi v. Republic**, Criminal Appeal No. 180 of 2011, CAT (unreported).

2.11.4: Preliminary inquiry of economic offences

- Subordinate Courts conduct preliminary inquiry to some offences which are exclusively triable by Corruption and Economic Crimes Division of the High Court.

- Cases which undergo preliminary inquiry include Homicide, treason, piracy and offenses listed in the first schedule to Economic Organised Crime and Control Act, Cap 200 as amended by the Written Laws(Miscellaneous Amendments) Act , No. 3 of 2016.

2.11.5: Committal proceedings of economic offences under G.N. No. 267/2016

- Sections 29 – 30 - committal proceedings by the district court.
- The procedure for granting bail is provided for in the Act (CAP 200); so the procedure under CPA does not apply – **Edward D. Kambuga and Another v. Republic** [1990] TLR 84.

2.12: Contempt of Court

- The offence of being disobedient to or disrespectful of a court of law and its officers
- Section 114 Penal Code, Cap 16 R.E. 2002
- Please take note of the procedure of dealing with the offence of contempt of court as exemplified in **the District Executive Director Tarime District Council and Three Others v. Samwel Mwera Siyange**, Civil Revision No. 3 of 2014, CAT (unreported).
- For sake of consistence in dealing with contempt of court see:

  Masumbuko Rashid v. Republic [1986] TLR 212

  Yasini Mikwanga v. Republic [1984] TLR 10

  Sosthenes Fumbuka v. Republic [2000] TLR 351
- **Please read also** the provisions of section 67 of the MCA and sections 18 and 19 of Cap 200.

CHAPTER THREE
PROBATE AND ADMINISTRATION OF ESTATES PROCEEDINGS

3.0: Introduction

- For the issue of administration of the estate of the deceased or the law of succession to come into play the following key factors must co-exist:

  One, there must be death of the property owner. This can be proved or evidenced by death certificate or affidavit of a relative or a person who attended the burial of the deceased.

  Two, there should be devolution of property to heirs. Various laws and rules apply to regulate the distribution of the deceased's estate to beneficiary or heirs.

  Three, there must be property or estate left by the deceased capable of being transferred to another person. **Note** that estate is an essential element in the law of succession.

  Fourth, Probate or letters of administration must be sought by the executor or personal legal representative in a court of competent jurisdiction.
- Section 2 of the Probate and Administration of Estates Act, Cap 352 – distinguishes "probate" and "administration".
- In "probate" it is the wish of the deceased testator that is given effect as shown in the will. In "administration of estate" the deceased dies without leaving a will and a third party applies to the court to administer his estate – **Mark Alexander Gaetje and Two Others v. Brigitte Gaetje Defloor,** Civil Revision No. 3 of 2011, CAT (unreported).

3.1: Laws applicable in Probate and Administration of Estates in Tanzania

Generally, administration of the estate of the deceased person and matters of succession in Tanzania are regulated by Statutory law, Islamic law and Customary law. These laws are outlined and explained below.

3.1.1: The Indian Succession Act, 1865

It was made to apply to Tanganyika through the Indian Acts (Application) Ordinance, Cap 2 passed by the British Indian Government. It contains provisions only covering Christians.

3.1.2: The Succession (Non-Christian Asiatics) Act, Cap 28 R.E. 2002

The Act applies in matters of succession relating to estates of deceased Non-Christians of Asiatic origin. Section 6 (1) of the Act, provides that succession to the movable property in Mainland Tanzania of a deceased Non-Christian Asiatic who at the time of death was domiciled in Mainland Tanzania and succession of the immovable property in mainland Tanzania of a Non- Christian Asiatic whether or not domiciled in mainland Tanzania at death, shall be regulated by the law of the religion professed by that Non-Christian Asiatic.

3.1.3: The Judicature and Application of Laws Act, Cap 358 R.E. 2002

This Act applies in matters of administration of estates and it specifically recognizes the application of customary and Islamic laws in administration of estate of the deceased.

3.1.4: The Probate and Administration of Estates Act, Cap 352 R.E. 2002

- It regulates substantive and procedural matters relating to the grant of probate and letters of administration of the estate of the deceased persons. It provides for powers and duties of executors and administrators.
- It provides for jurisdiction of various courts in administration of the estate of the deceased persons like the jurisdiction to grant and reseal probate and letters of Administration.
- It also recognizes the application of customary law and Islamic law in the administration of the estate of the deceased.

3.1.5: The Administrator- General (Powers and Functions) Act, Cap 27 R.E. 2002

It provides for the appointment and duties of an Administrator General. It also stipulates instances in which an Administrator General may be appointed to administer the estate of the deceased.

Please also take note of the amendments to the Act by Act No. 7 of 2018- The Written Laws (Miscellaneous Amendments) (No. 2) Act, 2018.

3.1.6: The Magistrates' Courts Act, Cap 11 R.E. 2002

- It regulates administration of the deceased's estate procedures in Primary courts where the law applicable is customary law or Islamic law.
- It provides for powers and duties of executors and administrators appointed by the Primary Courts. It also stipulates the Jurisdiction of

the Primary Courts in administration of the deceased's estate and other matters related thereto.

3.1.7: The Law of the Child Act No. 21 of 2009

It is mainly concerned with the welfare of a child. Section 10 of the Act provides that children are entitled to inherit from the estate of their deceased parents.

3.1.8: The Civil Procedure Code, Cap 33 R.E. 2002

- It applies when a District court, District Delegate or the High Court are exercising jurisdiction and where an application for probate and administration of the estates becomes contentious. This is provided under section 52 of the Probate and Administration of estates Act, Cap 352 R.E 2002.
- It also applies in proceedings where an executor or administrator applies to be made a party in cases involving an estate he is administering. This is reflected under Order XXX Rule 1 and 2 of the Civil Procedure Code, Cap 33 R.E. 2002.

3.2: Conflict of laws in probate and administration of the estate of the deceased

- It arises where one is to decide which law is applicable especially where there is a dispute of application of the existing laws. For instance, where a conflict is between statutory law and customary law or where a conflict is between statutory law and Islamic law. Courts on several occasions have adopted the mode of life test to resolve the conflict.

- **Innocent Mbilinyi, Deceased** [1969] HCD n.283, the issue of application of customary law and statutory law arose. Georges C.J held that;

  "On these facts which are in no way contraverted I am satisfied that it can be said that the deceased had abandoned the customary way of life in favour of what may be called a Christian and non-traditional way. There is satisfactory evidence that he was to a large extent alienated from his family and that his children had no connection whatever with them. Accordingly, I would direct that the law to be applied in the administration of the estate of the deceased should be Indian Succession Act."

- **Violet Ishengoma Kahangwa and Jovine Mutabuzi v. The Administrator General and Mrs Eudokia Kahangwa** [1990] TLR 72 the Court of Appeal held that;

  "the life style of the deceased at the time of his death was governed by traditions, customs and practices of Bahaya tribe to which he (the deceased) belonged, and therefore, the law applicable in administering the distribution of the estate was the customary law of the Bahaya."
- **Seif Marare v. Mwadawa Salum** [1985] TLR 253
- **Note that** where there is a conflict between statute law and customary law, then statute law applies.
- **Deocras Lutabana v. Deus Kashaga** [1981] TLR 122
- Also in resolving the conflict of Islamic law and statutory law the court considers the life style which a deceased person had lived in determining how his estate will be administered after his death.

- **Asha Shemzigwa v. Halima A. Shekigenda** [1998] TLR 254 at 258, Mwaikasu, J.(as he then was) observed that;

  "as both parties and the deceased were Moslems, and had been professing Islam, it follows that Islamic rules were applicable to the dispute concerning administration of the estate of the deceased."

- **Amina Taratibu Monde v. Sulemani Ahmedi Mtalika** [2000] TLR 56 the High Court held that;

  "Since the deceased was a Moslem who professed his religion until his death, the distribution of his estate was governed by Islamic law."

3.3: Jurisdiction of Courts in Probate and Administration of Estates

- Jurisdiction means courts power and limit within which it can entertain a certain matter. In probate and administration of the estate cases, the issue of jurisdiction is of great importance as failure to observe it will render proceedings a nullity.
- **Masoud Mbita and 2 Others v. Daria Rutihinda**, Misc. Civil Application No. 85 of 1998, High Court of Tanzania at Moshi (unreported) Munuo, J (as she then was) stated that;

  "The issue of jurisdiction is fundamental and the lack of jurisdiction renders proceedings a nullity. In this case the deceased, husband of the respondent whose estate is being contested by the parties was domiciled at Moshi although he also

has real property at Iringa. In that situation the District Court of Moshi had jurisdiction to determine the probate and administration cause for the matter could be filed at Moshi or at Iringa."

- Section 5 of Cap 352– The Chief Justice may appoint Resident Magistrates to be District Delegates. Once appointed they will have jurisdiction to grant probate and letters of administration.
- Until January 2018, according to the Chief Justice's Circular No. 1 of 2008, any Resident Magistrate who had practiced for a year was qualified to act as a District Delegate. However, according to the Chief Justice's Circular No.1 of 2018 issued in January 2018 all Magistrates in District Courts and Courts of Resident Magistrates are District Delegates.
- Therefore previously, presiding over a probate and administration proceedings without being appointed a district delegate made proceedings a nullity-**Shomary Abdallah v. Abdallah Hussein and Another** [1991] TLR 135.
- Take note of section 5(2) and (3) on non-contentious and contentious matters.
- Section 6 of Cap 352– A district court presided over by a district magistrate has jurisdiction to appoint administrators of small estates, if the deceased at the time of death was within its jurisdiction.
- Small estate is defined under section 2 of Cap 352 as amended by section 55 of the Written Laws (Miscellaneous Amendments) Act, No 2 of 2016 to mean an estate the gross value of which a court, district court or other authority having jurisdiction in probate or

administration is satisfied, does not exceed one hundred million shillings.

- Where there is a dispute over the estate of the deceased, it is only the Probate and Administration Court seized of the matter that can decide the issue of ownership of the property forming the estate of the deceased. **Mgeni Seif v. Mahamed Yahaya Khalfan**, Civil Application No. 1 of 2009, CAT (unreported).

3.4: Citation

- Section 61 (1) (a-c) of the Probate and Administration of Estate Act, Cap 352 RE 2002 directs that upon application being lodged, the court should issue citations calling upon all people claiming to have interest in the estate of the deceased. The purpose is to afford them opportunity to follow the proceedings and in order to ensure that justice is not only done but also seen to be done before the petitioner is granted probate or letters of administration.
- Section 61 (2) of the Probate and Administration of Estates Act, Cap 352 RE 2002 directs that, citation should be directed to the public particularly to those having interest in the estate of the deceased. It may also be placed on a conspicuous part of the court house, or be published in a local newspaper having a wide circulation in the country, or in the area where the deceased at the time of his death had place of abode or to be placed in such places as the court will direct.
- **Revenanth Eliawory Meena v. Albert Eliawory Meena and Another**, Civil Revision No. 1 of 2017, CAT (unreported).

3.5: Non- contentious petition [no objection to the grant]

- Following citation and where there is no objection to the grant and the requirements have been fulfilled, the court will grant probate or letters of administration to the applicant.
- Thus, where an application for grant of probate and letters of administration of estates has not been objected and the court is satisfied that the petitioner complied with all the requirements, then the grant should be made. After making the grant, the court's duty as far as probate and administration of estates are concerned will be discharged unless there is an important issue which needs court intervention.

3.6: Caveat

- A caveat is a notice filed by a person who claims to have an interest in the estate of the deceased intended to prevent the grant of letters of administration or probate without notice to him.
- Following citation, a person who feels that he has an interest over the estate of a deceased person may enter a caveat against the proceedings for grant of probate or letters of administration.
- Section 58 of the Probate and Administration of Estates Act provides as follows;

  "(1) Any person having or asserting an interest in the estate of the deceased may enter a caveat against the probate grant or letters of administration.

  (2) A caveat may be entered with the High Court or, where the deceased at the time of his death had his fixed place of abode

within an area for which a District Delegate has been appointed or application for probate or letters of administration has been made to a District Delegate, with that District Delegate.

(3) Immediately on a caveat being entered with a District Delegate he shall send a copy thereof to the High Court.

(4) Where a caveat lodged with the High Court discloses that the deceased at the time of his death, has his fixed place of abode within an area for which a District Delegate is appointed, the Registrar shall send a copy thereof to that District Delegate.

(5) A caveat shall remain in force for four months after the date upon which it was lodged (unless sooner withdrawn) but, subject to the provisions of section 59, may be renewed."

- Section 59 (1) of Cap 352 once a caveat has been entered the proceedings for any grant will be stayed, pending determination of the caveat. It reads;

  "Save as provided in this section, no proceedings shall be taken on a petition for probate or letters of administration after a caveat against the grant or a copy thereof has been entered with a court to whom application has been made so long as the caveat remains in force."

- Granting probate or letters of administration while there is a caveat is wrong.
- **Kijakazi Mbegu and 5 Others v. Ramadhani Mbegu** [1999] TLR 174 -It was held that "the Court erred in granting letters of administration to the respondent while the caveat was in force."

3.7: Contentious petition [objection to grant-caveat]

- Proceedings subsequent to caveat means application for any grant will turn to be contentious and each side will be required to adduce evidence to substantiate his claim.
- Section 52 (2) of the Probate and Administration of Estates Act, Cap 352 RE 2002 stipulates that upon application and where there is a contentious matter, the proceedings take the form of civil suit. The applicant seeking for grant shall be treated as the plaintiff while the person objecting the grant shall be treated as the defendant.
- For clarity, section 52 (a-b) of Probate and Administration of Estates Act provides that;

  "Except as hereinafter provided, and subject to any Probate Rules made in that behalf–

  (a) the proceedings of the court relating to the grant of probate and letters of administration shall be regulated, so far as the circumstances of the case admit, by the Civil Procedure Code, or any enactment replacing the same; and

  (b) in any case in which there is contention, the proceedings shall take, as nearly as may be the form of a suit in which the petitioner for the grant shall be plaintiff and any person who appears to oppose the proceedings shall be defendant."

- In **Nuru Hussein v. Abdul Ghani Ismail Hussein** [2000] TLR 217 it was held that:

(i) The filing of a caveat in a probate or administration proceedings changes the proceedings into an ordinary civil suit, the petitioner

becoming the plaintiff and the respondent becomes the defendant and parties must file special pleadings.

- **Revenanth Eliawory Meena v. Albert Eliawory Meena and Another**, Civil Revision No. 1 of 2017, CAT (unreported).

3.8: Proceedings subsequent to caveat

- In the **Matter of the Estate of the late Joseph Saroni Tarimo and in the Matter of Application for letters of Administration by Mage Joseph Tarimo**, Probate and Administration Cause No.6 "B" of 2001, High Court of Tanzania at Moshi (unreported) following a caveat, the petitioner was required to move the court to order citation to the caveator as contemplated by section 59 (2) of the Probate and Administration Act, Cap 352 RE 2002 after caveat had been lodged but for undisclosed reasons he failed.
- When caveat has been lodged against any grants, courts must adhere to the procedure of resolving it.
- **Professor (Mrs.) Esther Mwaikambo v. Davis J. Mwaikambo and 4 Others**, Civil Appeal No. 52 of 1997, Court of Appeal of Tanzania at Dar es Salaam (unreported) in which part of the proceedings of the case was vitiated as the court which tried the application disregarded the provision of handling the lodged caveat. The Court of Appeal, stated that;

  "…It is apparent that the proceedings were conducted in accordance with the law only up to the stage when the appellant applied for the issue of citation to the caveators. Thereafter, however, it is obvious that the proceedings leading to the disposal

of the matter were short circuited. Section 59 (2) of the Probate and Administration Ordinance Cap 445 provided that;

(2) Where a caveat has been entered, any person who petitions for a grant of probate or letters of administration shall apply for the issue of a citation to the caveator calling upon him to state, within such time as may be specified therein, whether he supports the grant of probate or letters of administration to the petitioner and, if he does not, requiring him to enter an appearance to the petition."

- The Court further stated that;

  "As stated earlier, the appellant duly applied for the issue of citation to the caveators. But the Registrar did not issue citation to the caveators as required by Rule 82 (3) of the Probate Rules (hereinafter referred to as the Rules). That rule says:-

  Upon receipt of an application under paragraph (2) the Registrar shall issue a citation in the form prescribed in the first schedule to the caveator calling upon him to state, within a period of thirty days from the date of the service of the citation upon him, whether he supports the grant of probate or letters of administration to the petitioner, and, if he does not, requiring him to enter an appearance.

  This omission by the Registrar derailed the rest of the trial. For, by reason of it the respondent caveators failed to enter an appearance which could have rendered the matter contentious and hence bring it within the ambit of section 53 of the Probate and Administration ordinance.

Thus although the respondent caveators clearly contested or opposed the position by having the caveat entered on their behalf, they did not thereafter comply with the prescribed procedure which requires, inter alia, that where, as here, the petition has been opposed the proceedings shall take as nearly as may be the form of a suit, with the implication that essentially the court is required to decide the matter on the basis of oral evidence."

- **Hadija Masudi (as the legal representative of the late Halima Masudi v. Rashidi Masudi**, Civil Appeal No. 26 of 1992, Court of Appeal of Tanzania at Dar es Salaam (unreported), it was held that;

  "Once a caveat has been entered against grants for Probate or letters of administration, the caveator will be made a party to the case, he will have a right to appeal in the same manner as it is with ordinary suits subject to jurisdiction and time limit."

3.9: Limitation period of caveat

- Once lodged, a caveat shall remain in force for a period of four months from the date when it was lodged. Section 58 (4) of the Probate and Administration Act provides;

  "A caveat shall remain in force for four months after the date upon which it was lodged (unless sooner withdrawn) but, subject to the provisions of section 59, may be renewed."

- It is the duty of a person who petitions for probate or letters of administration to apply for issue of citation as provided for under section 59 (2) of the Probate and Administration of Estates Act.

- Rule 82 (2A) of the Probate Rules directs that, in case the petitioner has failed to file such an application within the stipulated period, the Registrar shall cause a notice to be served upon the petitioner requiring him to lodge the application within a further period of twenty one (21) days from the date of the service of the notice.
- Rule 82 (2B) of the Probate Rules provides that, in case the petitioner will fail to respond to the notice by the Registrar within the time provided then the petition shall be deemed to have been withdrawn.
- In **the Matter of the Estate of the late Joseph Saroni Tarimo and In the Matter of Application for Letters of Administration by Mage Joseph Tarimo**, (*supra*), it was stated that the applicant therein was duty bound to comply with the provisions of section 59 (2) of the Ordinance (now Cap. 352 RE 2002) which requires the petitioner to apply for the issue of citation once caveat has been lodged. The petitioner made an application for the issue of citation after a lapse of a year. In the case, Mmilla, J. (as he then was) was of considered view that;

  "One thing is clear that there is no section under the Probate and Administration Ordinance Cap.445 which prescribes time within which an application of this kind may be instituted. In such circumstances, resort is made to the Law of Limitation Act No. 10 of 1971. Part III of the First Schedule to that statue *(sic)* covers limitation of time in respect of applications. Paragraph 21 under this part provides for a limitation period of sixty (60) days in respect of, among others, other written law for which no period of limitation in this Act or any other written law has been prescribed.

In view of the fact that a year has been elapsed from the time when a copy of the caveat was served on the applicant, the pleadings cannot be served now for being time barred."

- Rule 82 (3) of the Probate rules stipulates that, when citation is issued to the caveator he will be required to state within thirty(30) days whether he supports the grant or not. If the caveator does not support the grant he should enter an appearance to the petition.

3.10: Grant of probate and letters of administration

- Section 24 – Grant of probate is only to an executor appointed by the will.
- Section 33 – Letters of administration may be granted to any person.
- A person below the age of 18 years and of unsound mind cannot be appointed as an executor or administrator.
- The Court can grant interim administration of the estate depending on the circumstances of the case (Administrator/Administrix *pendente lite*) to authorize to do some matters like "arrange for and determine the place of burial of the deceased." **Albert Braganza and Another v. Mrs. Flora Lourdin Braganza** [1992] TLR 307.

3.11: Powers and duties of executors and administrators

- After obtaining a grant of probate or letters of administration the executors and administrators respectively, become the personal and legal representative of the deceased person in all matters concerning the estate.
- Section 71 of the Probate and Administration of Estates Act provides that;

"Probate and letters of administration shall–

(a) have effect over all the property, movable and immovable, of the deceased throughout Tanzania; and

(b) be conclusive as to the representative title against all debtors of the deceased, and all persons holding property which belongs to him; and

(c) afford full indemnity to all debtors paying their debts, and all persons delivering up such property to the person to whom such probate or letters of administration shall have been granted."

- Section 100 of the Probate and Administration of Estates Act confers executors or administrators powers to sue.

  "An executor or administrator has the same power to sue in respect of all causes of action that survive the deceased, and may exercise the same powers for the recovery of debts due to him at the time of his death, as the deceased had when living."

- **Sekunda Mbwambo v. Rose Ramadhani** [2004] TLR 439;

  "The objective of appointing an administrator of the estate is the need to have a faithful person who will, with reasonable diligence, collect all the properties of the deceased. He will do so with the sole aim of distributing the same to all those who were dependants of the deceased during his life-time. The administrator, in addition, has the duty of collecting all the debts due to the deceased and pays all the debts owed by the deceased. If the deceased left children behind, it is the responsibility of the administrator to ensure that they are properly taken care of and well brought up using the properties left behind

by their deceased parent. After the administrator has so faithfully administered and distributed the properties forming the estate he has a legal duty to file an inventory in the Court which made the appointment giving a proper account of the administration of the estate.

This action is intended to help anyone of the beneficiaries who feels aggrieved at the way the property was distributed and thus dissatisfied to lodge his/her complaints to the Court which would in turn investigate the same and decide the matter in accordance with the dictates of the law. In view of all this, it is evident that the administrator is not supposed to collect and monopolize the deceased's properties and use them as his own and/or dissipate them as he wishes, but he has the unenvitable heavy responsibility which he has to discharge on behalf of the deceased. The administrator might come from amongst the beneficiaries of the estate, but he has to be very careful and impartial in the way he distributes the estate.

Furthermore, it must by now be very obvious to all, that such an administrator must be a person who is very close to the deceased and can therefore, easily identify the properties of the deceased. He must also have the confidence of all the beneficiaries or dependants of the deceased. Such a person may be the widow or the widows, the parent or child of the deceased or any other close relatives of the deceased. If such people are not available or if they are found to be unfit in one way or another, then the Court

has the powers to appoint any other fit person or authority to discharge this duty."

- Duty to account in the court for the administration of estate of the deceased-**Ally Omari Abdi v. Amina Khalil Ally Hildid**, Civil Appeal No. 103 of 2016, CAT (unreported).

3.12: Revocation of grants

- Revocation means cancelling the effect of previous act.
- Section 49 (1) (a-e) of Cap 352 and Rule 29.
- Grants may be revoked in instances/circumstances specified under section 49.
- Once an executor has filed an inventory and account in court, the probate cannot be revoked.
- Once inventory and account has been lodged, exchequer receipts must be issued as a proof.
- Once the executor has discharged his duty of executing the will, whether honestly or otherwise and has already exhibited the inventory and accounts in the court, there is no probate which can be revoked or annulled in terms of section 49. **Ahmed Mohamed Al-Laamar v. Fatuma Bakari and Another**, Civil Appeal No. 71 of 2012, CAT (unreported).

3.13: Procedure after grant of probate and letters of administration

- Generally covered under PARTS VIII and X but note:-
  Section 84 – District Court to make returns to the High Court.
  Sections 106 and 107 - on inventory and accounts, respectively.

- The court has a duty to ensure that these requirements are complied with.
- After obtaining the grant, one should not distribute the estate unless he has issued a notice to the creditors and all who have claims against the estate of the deceased. The notice should be made within sixty days of the appointment.
- After administration and distribution of the estate, the administrator shall prepare a report of administration and send it to court which made the grant.
- By the report, the executor or administrator is telling the court that the work of administration of the estate in which a grant was made has been completed.
- After completion of administration, any interested person who feels that he was entitled to a share of the estate of the deceased person may bring a claim against other beneficiaries.
- **Hadija Masudi (as the legal representative of the late Halima Masudi) v. Rashidi Masudi**, *(supra)* the administrator had discharged his duties of administration by handing over the entire estate to the sole heir of the deceased. Administration of the estate was made under supervision of a Primary Court without objection from any quarter. Afterward, the administrator died. The respondent filed application for letters of administration. As the administrator was dead, the Court of Appeal observed that;

  > "That being the position, it is not possible to reverse the process for two main reasons. Firstly, the administrator is already dead and consequently there is no question of revoking his

appointment. Secondly, the administration of the estate of the deceased Salima Masudi was done and completed under the sanction of the Primary Court of Morogoro and there has been no appeal from that court to a higher court."

- It was further held that;

  "This state of affairs does not however mean that a person who claims to be an heir of Salima Masudi and who has not got his or her rightful share of the deceased's estate, has no remedy at law; far from it. The remedy for such person, like the respondent, is to sue for the recovery of his or her share of the estate of the deceased Salima Masudi from any person who is in possession of it. This is what the respondent should have done in this case instead of seeking to be appointed an administrator of an estate which has already been administered. This means that the respondent should have sued Halima Masudi or her heirs as she has since died.

  It would seem that the respondent cannot sue the administrator appointed by the Primary Court or his estate since he got discharged by the court after completing his assignment and also because his bond for performance of his duties did not bind his heirs."

- **Issa Mashaka v. Abrahamani Kassimu**, (PC) Civil Appeal No. 35 of 1996 (unreported).
- Sections 92 (1) and 73 (1-3) requires the District Court to take into account various rules of customary law prevailing in the area where it is established. Also regard be to rules of Islamic law-**Violet**

Ishengoma Kahangwa and Jovin Mutabuzi v. The Administrator General and Mrs Eudokia Kahangwa [1990] TLR 72.

3.14: The role and duties of the Administrator General, Cap 27

- Sections 5, 6 and 7 – spell out circumstances under which the Administrator General may apply to administer estates.
- Section 41 – The Administrator General to make a complete inventory of every estate.
- Section 43 – The Administrator General to file in court accounts and vouchers relating to the estate.

3.15: Some Important Matters

- Testamentary disposition means a gift that takes effect on the death of the giver, a bequest made in a will.
- Testator means a person who makes a will. A female testator is sometimes called a testatrix.
- The Court should not perform the duties of administrators/Executors.

  -**Seif Marare v. Mwadawa Salum** [1985] TLR 253.

  -Ibrahimu Kusaga v. Emmanuel Mweta [1986] TLR 26.

  -**Jamson Kishosha Gabba v. Charles Kigogo Gabba** [1990] TLR 133.

CHAPTER FOUR

EVIDENCE RULES

4.0: General rules of Evidence

- The object of the rules of evidence is to help the courts to ascertain the truth and to avoid the confusion in the minds of magistrates and judges which may result from the admission of evidence in excess. It is in this regard that the correct and uniform rule of practice has been enacted (The Evidence Act, Cap 6 R.E. 2002).

Basis of rules of evidence

- No facts other than those having some connection with the matter in controversy should be worked into by the court however interesting it may be; and
- All facts having rational probative value i.e. which helps the court to come to conclusion upon the existence or non existence of the matter in controversy, are admissible in evidence, unless excluded by some rule of paramount importance.

Leading rules of Evidence

- The sole object and end of evidence is to ascertain the truth of several disputed facts and points in issue and no evidence ought to be admitted which is not relevant to the issue.
- The point in issue is to be proved by the party who asserts the affirmative.
- The evidence must be sufficient to prove the substance of the issue.
- The best evidence must be given of which the nature of the thing is capable.

- Hearsay evidence of fact is not admissible with some slight exceptions.
- No person is bound to incriminate himself.

4.1: Burden of proof

- The obligation to prove what is alleged. In criminal cases, this obligation rests on the prosecution which must prove its case beyond reasonable doubt. In civil cases, it rests on the plaintiff, who must prove his case on the balance of probabilities. Sometimes, however, this burden shifts, example where the defendant raises particular defences.
- Section 110 of the Evidence Act, (TEA) Cap R.E. 2002 – Burden of proof lies on any person who desires any court to give judgment as to any legal right or liability dependent on the existence of facts which he asserts.
- This provision is based on the famous maxim "he who avers must prove".
- In **Re B [2008] UKHL 35**, Lord Hoffman using a mathematical analogy in explaining the burden of proof stated:

  "If a legal rule requires a fact to be proved (a "fact in issue"), a judge or jury must decide whether or not it happened. There is no room for a finding that it might have happened. The law operates a binary system in which the only values are 0 and 1. The fact either happened or it did not. If the tribunal is left in doubt, the doubt is resolved by a rule that one party or the other carries the burden of proof. If the party who bears the burden of proof fails to discharge it, a value of 0 is returned and the fact is

treated as not having happened. If he does discharge it, a value of 1 is returned and the fact is treated as having happened."

4.2: Standard of proof in Criminal cases

- The prosecution must prove its case beyond reasonable doubt. At most, the accused may only be expected to raise reasonable doubt on the prosecution case against him.
- **Selemani Tilwilizayo v. The Republic** [1983] TLR 402
- In **Anatory Mutafungwa v. The Republic**, Criminal Appeal No. 267 of 2010, CAT (unreported) the Court of Appeal stated that:

  "With regard to the standard of proof, counsel for the appellant referred us to the case of **Joseph John Makune v. The Republic [1986] TLR 44 at page 49** wherein the Court considered the prosecution evidence adduced in the particular case and held:-

  "The cardinal principle of our criminal law is that the burden is on the prosecution to prove its case; no duty is cast on the accused to prove his innocence. There are a few well known exceptions to this principle, one example being where the accused raises the defence of insanity in which case he must prove it on the balance of probabilities….."

4.3: Standard of proof in Civil cases

- Proof on a balance of probabilities. Thus, evidence that may be insufficient to support a conviction in a criminal case may be sufficient in a civil case.
- **Antony M. Masanga v. (1) Penina (Mama Mgesi) (2) Lucia (Mama Anna)**, Civil Appeal No. 118 of 2014, CAT (unreported).
- In civil cases, the burden of proof lies on the party who alleges anything in his favour. It is common knowledge that in civil proceedings the party with legal burden also bears the evidential burden and the standard in each case is on the balance of probabilities.
- **Wolfgango Dourado v. Toto Da Costa**, Civil Appeal No. 102 of 2002, CAT (unreported).
- In **Attorney General and Two Others v. Eligi Edward Massawe and 104 Others**, Civil Appeal No. 86 of 2002, CAT (unreported) the Court of Appeal stated at page 7 of the typed judgment that:

  > "We are satisfied that the plaintiffs did not establish the claim of subsistence allowance on the balance of probabilities because they adduced no evidence at all to substantiate the same at the trial."

4.4: Admission of evidence

- Admission plays a very important part in judicial proceedings.
- Admission is a statement, oral or documentary or contained in electronic form which suggests any inference as to any fact in issue or relevant fact, and which is made by any of the persons under some circumstances.

- Section 145 of the Evidence Act, [Cap 6 R.E 2002] - Evidence of any fact to be admitted only if it is relevant.

  NB:- Please note that under Order XIII Rule 7 of CPC a document which is not admitted in evidence cannot be treated as forming part of the record – **Japan International Cooperation Agency (JICA) v. Khaki Complex Limited** [2006] TLR 343, **Godbless Jonathan Lema v. Mussa Hamis Mkanga and Two Others**, Civil Appeal No. 47 of 2012, CAT (unreported).

4.5: Circumstantial evidence

- It is evidence based on inferences and not on personal knowledge – Section 11 Cap 6.
- The inference to be drawn must be consistent with all the proved facts.
- The proved facts should be such that they exclude every reasonable inference from them save the ones sought to be drawn.
- In a case where the evidence against the accused is wholly circumstantial all the facts from which an inference of guilt or adverse to the accused sought to be drawn must be proved beyond reasonable doubt and must clearly be connected with the facts from which the inference is to be drawn or inferred – **Ally Bakari and Pili Bakari v. Republic** [1992] TLR 10.
- In a case depending entirely on circumstantial evidence before an accused can be convicted the court must find that the inculpatory facts are inconsistent with the innocence of the accused and incapable of explanation upon any other reasonable hypothesis than that of guilt – **Ilanda Kisongo v. R** [1960] EA 780 at page 782.

- Before drawing the inference of the accused's guilt from circumstantial evidence it is necessary to be sure that there are no other co-existing circumstances which would weaken or destroy the inference – Privy Council decision in **Teper v. R** (4) [1952] AC 480 at page 489.
- **Seif Selemani v. Republic**, Criminal Appeal No. 130 of 2005, Court of Appeal of Tanzania (unreported);

  "where the evidence against an accused person is wholly circumstantial, the fact from which an inference adverse to the accused is sought to be drawn must be clearly connected with the facts from which the inference is to be inferred .In other words, the inference must irresistibly lead to the guilty of an accused person."

4.6: Corroboration

- A form of evidence which supports or confirms other evidence.
- **Azizi Abdallah v. Republic** [1991] TLR 71 "The purpose of corroboration is not to give validity or credence to evidence which is deficient or suspect or incredible but only to confirm or support that which as evidence is sufficient, satisfactory and credible."
- Evidence in corroboration must be independent testimony which affects the accused by connecting or tending to connect him with the crime. It must be evidence which implicates him, that is, which confirms in some material particular not only the evidence that the crime has been committed but also that the prisoner committed it – **Rex v. Baskerville** [1916] 2 K.B. 667.

- May be required as a matter of practice or law. Where it is required as a matter of practice the court may convict after warning itself of the danger of acting on uncorroborated evidence.
- Examples of instances where corroboration is required as a matter of law-
    (a) Section 33 (2) Cap 6– **MT 38870 PTE Rajab Mohamed and Others v. Republic,** Criminal Appeal No. 141 of 1992, CAT (unreported).
    (b) Section 105 of the Penal Code – no conviction for perjury or subordination of perjury solely on the evidence of one witness.
- **Ally Msutu v. Republic** [1980] TLR 1
  Evidence which requires corroboration cannot corroborate another.

4.7: Competence, compellability, privileges and credibility of witnesses

4.7.1: Competence

- Section 127 (1) Cap 6– As a general rule every person is competent to testify unless the court considers that he is incapable of understanding the questions or giving rational answers by reason of old age or disease.

4.7.2: Compellability

- Arises in situations where a witness is compelled to give evidence; section 199 of CPA where refractory witnesses may be committed to prison for refusing to be sworn.
- Section 130 – A spouse may be a competent but not a compellable witness for the prosecution.

4.7.3: Privilege

- A witness may in certain cases claim privilege as a ground for declining to give evidence on certain matters.
- It is for the presiding magistrate to decide whether or not claim for privilege is well founded.
- Confidential official documents or communications between government officials are privileged from production.
- Section 141 Cap 6– A witness is not excused from answering questions on grounds that the answers will incriminate him provided that no such answer which he is compelled to give shall subject him to any arrest, prosecution.

4.7.4: Credibility

- Section 143 of the Evidence Act, Cap 6 R.E 2002 provides that no number of witnesses is required to prove any fact.
- Whether or not a witness is credible is a matter to be decided by the court on the basis of the evidence on record. It is, however, "trite law that every witness is entitled to credence and must be believed and his testimony accepted unless there are good and cogent reasons for

not believing the witness"– **Goodluck Kyando v. Republic** [2006] TLR 363.

- **Mathias Bundala v. R**, Criminal Appeal No. 62 of 2014, CAT (unreported).
- **Marco s/o Gervas v. R** [2002] TLR 27.
- Even where relatives testify it is not the law that they should not be believed unless there is also evidence of a non – relative corroborating their story. The evidence of each of them must be considered on merit, the veracity of their story must be considered and gauged judiciously– **Paulo Tarayi v. Republic**, Criminal Appeal No. 216 of 1994, CAT (unreported).
- It is trite law that where the decision of a case is wholly based on credibility it is the trial court which is better placed to assess credibility than the appellate court which merely reads the transcript of the record – **Shaban Daudi v. Republic,** Criminal Appeal No. 28 of 2000, CAT (unreported).
- Section 164 (1) Cap 6- instances where the credibility of a witness may be impeached by the adverse party or, with the consent of the court, by the party who calls him, that is, by proof of former statements inconsistent with any part or his evidence.
- Section 154 Cap 6- the witness may be cross-examined on previous statement.

4.8: Confessions

- Section 3 (1) (a) (b) (c) and (d) of Cap 6 – definition of "confession".
- Section 27 (1) Cap 6– A confession voluntarily made to a police officer by an accused may be proved against him. "The proper interpretation of S. 27 is that a confession made to a police officer is admissible only if the police officer is of or above the rank of a corporal" - **Director of Public Prosecutions v. Regina Karantini and Another**, Criminal Appeal No. 110 of 1998, CAT (unreported).
- An extra – judicial statement (whether a confession or just an admission) is admissible in evidence so long as it is voluntarily made – **Juma Thomas Zangira v. Republic** [1980] TLR 73.

4.9: Cautioned statements

- Section 57 CPA – Arise when **a police officer interviews** a person for the purpose of ascertaining whether a person has committed the offence.
- Section 58 CPA – Arise where the person under restraint **informs a police officer** that he wishes to write out a statement.
- Please note that there is a distinction between sections 57 and 58 (*supra*). The record of an interview under section 57 is required to be recorded in question and answer form. A cautioned statement under section 58 is written without the writer being led by being asked questions – **Seko Samwel v. Republic** [2005] TLR 371.
- Section 9 of the Written Laws (Miscellaneous Amendments) Act, No. 7 of 2018 amended section 57 CPA with the effect of empowering a Police Officer to interview a person by using an audio or video device.

4.10: Retracted and repudiated confession

Tuwamoi v. Uganda [1967] EA 84, 87

> "The basic difference between retracted and repudiated confession is of course, that a retracted statement occurs when the accused person admits that he made the statement recorded but now seeks to recant, to take back what he said, generally on the ground that he had been forced or induced to make the statement, in other words that the statement was not a voluntary one. On the other hand a repudiated statement is one in which the accused person avers he never made."

Kashindye Meli v. Republic [2002] TLR 374

> It is now settled law that although it is dangerous to act upon repudiated or retracted confession unless such confession is corroborated, the court may act upon such confession if it is satisfied that the confession could not but be true.

Paulo Maduka and Four Others v. The Republic, Criminal Appeal No. 110 of 2007, CAT (unreported).

4.11: Exclusion of evidence illegally obtained

- Section 169 CPA – The section is invoked where objection is taken to the admission of evidence on the ground that the evidence was obtained in contravention of the Act (CPA). The objection should be taken at the time of giving or tendering the evidence –**Zakayo Shungwa Mwashilingi, Rai Mwashilingi and Abel Mwamezi v. Republic,** Criminal Appeal No. 78 of 2007 CAT, (unreported).

- It is trite law that whenever it is intended to introduce a document in evidence it should first of all be cleared for admission by ascertaining from the accused whether or not he has any objection. The failure to do so will result in the document being expunged from the record – **Robinson Mwanjisi and Another v. Republic** [2003] TLR 218, **Charles Vitalis Ndege Matutu and Others v. Republic**, Criminal Appeal No. 257 of 2014, CAT (unreported).
- The correct procedure to be adopted when objection is raised – **Rashid and Another v. Republic** [1969] EA 138, **Selemani Abdallah and two others v. Republic,** Criminal Appeal No. 384 of 2008, CAT (unreported), **Kinyori s/o Karutu** [1956] 23 EACA 480.
- **Note that** section 169 has been amended by section 11 of the Written Laws (Miscellaneous Amendments)(No.2) Act, 2018 [Act No. 7 of 2018] as follows:

  The principal Act is amended in section 169-

  (a) in subsection (2), by adding immediately after paragraph (c) the following new paragraph:

  "(d) all the circumstances of the offence, including the circumstances in which the evidence was obtained."

  (b) by adding immediately after subsection (3) the following new subsections:

  "(4) The court shall, prior to exclusion of any evidence in accordance with subsection (1), be satisfied that the failure or breach was significant and substantial and that its exclusion is necessary for the fairness of the proceedings.

(5) Where the court excludes evidence on the basis of this provision it shall explain the reasons for such decision."; and

(c) by renumbering subsection (4) as subsection (6).

4.12: Evidence of accomplice

- An Accomplice is a person who participates in the commission of a crime as a principal offender, an accessory before or after the fact, an aider or abettor.
- Section 142 Cap 6– An Accomplice is a competent witness against an accused person and conviction is not illegal merely because it proceeds on the uncorroborated testimony of an accomplice.

4.13: Evidence of a child

- Section 26 of the Written Laws (Miscellaneous Amendments) Act No. 2 of 2016 has amended section 127 of the Evidence Act, Cap 6 R.E 2002 (the Principal Act) as follows:

  "Section 127 of the Principal Act is amended by-

  (a) Deleting subsections (2) and (3) and substituting for them the following:

  "(2) A child of tender age may give evidence without taking an oath or making an affirmation but shall, before giving evidence, promise to tell the truth to the court and not to tell any lies."

  (b) Re-numbering subsections (4), (5), (6) (7) and (8) as subsections (3), (4) (5), (6) and (7) respectively."

4.14: Statements by medical witnesses [S. 240(3) CPA]

Requirement under S. 240 (3) CPA

- When the report is received in evidence the court may if it thinks fit, and **shall,** if so requested by the accused and the court **shall** inform the accused of his right to require the person who made the report to be summoned for cross examination - **Richard Bukori v. Republic**, Criminal Appeal No. 25 of 2011, **Makondo Maginga v. Republic**, Criminal Appeal No. 21 of 2011 (both CAT and unreported).
- The court has the mandatory duty of informing the accused of his right to require the person who made the report to be summoned for cross – examination– **Isambi Saini @ Mwazembe v. Republic**, Criminal Appeal No. 142 of 2010, CAT (unreported).
- Please note that under the above subsection the report envisaged thereto will more often than not have been made by a medical doctor. In the legal parlance a doctor may be summoned as an expert witness. However, it is trite law that an expert witness merely gives opinion evidence and the value of that evidence depends upon the experience and ability of the witness and the extent to which his opinion is supported by the opinion and experience of other recognized experts in the particular field – **Rajabu v. Republic** [1970] EA 395 at page 397.

4.15: Electronic evidence

- Section 40A Cap 6– Information retrieved from computer systems, networks and servers is admissible in evidence.
- For rules on admissibility of Electronic Evidence see the Electronic Transactions Act, 2015, No. 6 of 2015 and The Cyber Crimes Act,

2015, No. 4 of 2015. See also **Lazanus Mirisho Mafie and M/S Shiddya Tours Safaris v. Odilo Gasper Kilenga @Moiso Gasper**, Commercial case No. 10 of 2008 (High Court-unreported).

4.16: Estoppel

Sections 123 – 126 Cap 6

- Section 123 - When a person by his declaration, act or omission, intentionally caused or permitted another person to believe a thing to be true and to act upon that belief neither he nor his representative shall be allowed to deny the truth of that thing.
- For estoppel to apply it must be one of fact and not law. It must also be unambiguous.
- Estoppel prevents a person from saying one thing at one time and retreating from it another time.
- Estoppel is a rule of equity.
- Estoppel originates from representation or conduct of a party.
- Estoppel prevents a person to rebut what has been represented by him.
- Estoppel can be inferred from the conduct of the parties.

4.17: Judicial notice

- Sections 58 and 59 TEA Cap 6
- Section 58 – A fact which a court takes judicial notice of need not be proved.
- Section 58 provides:

"58. Facts judicially noticed

No fact of which a court takes judicial notice need be proved.

- Section 59 – Facts which a court shall take judicial notice of i.e. written laws.
- Section 59 provides:

"59. Facts of which court shall take judicial notice

(1) A court shall take judicial notice of the following facts–

(a) all written laws, rules, regulations, proclamations, orders or notices having notice the force of law in any part of the United Republic;

(b) the existence and title of societies or other bodies the registration of which has been notified in the Gazette;

(c) the course of proceedings of Parliament;

(d) all seals of all the courts of the United Republic duly established and of notaries public, and all seals which any person is authorised to use by any written law;

(e) the accession to office, names, titles, functions and signatures of the persons holding any public office in any part of the United Republic, if the fact of their appointment to such office is notified in the Gazette;

(f) the existence, title and national flag of every State or Sovereign recognised by the United Republic;

(g) the divisions of time, the geographical divisions of the world, and public festivals, feasts and holidays notified in the Gazette;

(h) the commencement, continuance and termination of hostilities between the United Republic and any other State or body of persons;

(i) the names of the members and officers of the court, and of their deputies and subordinate officers and assistants, and also of all officers acting in execution of its process, and of all advocates and other persons authorised by law to appear or act before it.

(2) In all cases referred to in subsection (1) and also in matters of public history, literature, science or art, the court may resort for its aid to appropriate books or documents of reference.

(3) If the court is called upon by any person to take judicial notice of any fact, it may refuse to do so unless and until such person produces any such book or document as it may consider necessary to enable it to do so."

- In **Mwajuma Mbegu v. Kitwana Amani**, Civil Appeal No. 12 of 2001, CAT(unreported) the Court of Appeal stated that:-

  "It is true that certain matters need not formally be proved. The principal matters of which the court will take judicial notice are contained in section 59 (1) of the Evidence Act, 1967..."

- A Magistrate takes judicial notice, that is, accepts without proof, certain facts of general knowledge such as the laws of Tanzania, the succession of years, months, and days and the like.

CHAPTER FIVE
MATRIMONIAL PROCEEDINGS
UNDER THE LAW OF MARRIAGE ACT, CAP 29 R.E. 2002

5.1: Definition of marriage

- Section 9 (1) - The voluntary union of a man and a woman intended to last for their joint lives.
- Section 10 – Marriages are of two kinds – monogamous or intended to be monogamous and polygamous or potentially polygamous.

5.2: Conciliation Boards

- Sections 101 – 104
- Section 102 – Established by the Minister.
- Section 102 – Composition – a chairman and not less than two and not more than five members.
- **Athanas Makungwa v. Darini Hassani** [1983] TLR 132
- Section 104 - Proceedings – requirement for the attendance of parties and issue of summons.
- Section 104 (8) no advocate shall appear or act for any party.

5.3: Presumption of Marriage

- Section 160 (1) – Where it is proved that a man and a woman have lived together for two years or more ... there shall be a presumption that they were duly married.
- Please note that this is a presumption which can be rebutted.
- **Fatuma Aman v. Rashid Athuman** [1967] HCD n. 48
- **Ali Pazi v. Hamis Mohamed** (1968) HCD n. 18

- **Francis Leo v. Paschal Simon Maganga** [1978] LRT 22
- **Harubushi Seif v. Amina Rajabu** [1986] TLR 221
- In **Hemedi S. Tamim v. Renata Mashayo**[1994]TLR 197 the Court of Appeal held:

  (i) Where the parties have lived together as husband and wife in the course of which they acquire a house, despite the rebuttal of the presumption of marriage as provided for under s 160 (1) of the Law of Marriage Act 1971, the courts have the power under s 160 (2) of the Act to make consequential orders as in the dissolution of marriage or separation and division of matrimonial property acquired by the parties during their relationship is one such order;

  (ii) Having found that the parties were not duly married, the decision of the lower court regarding the dissolution of marriage is void.

5.4: Void and voidable marriages

- Section 38 – Circumstances where a ceremony purporting to be a marriage shall be a nullity, that is, if either party is below the minimum age, if parties are within the prohibited relationships.
- **Basiliza B. Nyimbo v. Henry Simon Nyimbo** [1986] TLR 93
- Section 39 – Voidable marriages – instances where a marriage may be voidable, that is, where either party was incapable of consummating it.
- Section 40 -A voidable marriage is for all purposes a valid marriage until it is annulled by a decree of the court.
- Section 41 covers matters not affecting validity of marriage. It reads:-

A marriage which in all other respects complies with the express requirements of this Act shall be valid for all purposes, notwithstanding–

(a) any non-compliance with any custom relating to dowry or the giving or exchanging of gifts before or after marriage;

(b) failure to give notice of intention to marry as required by this Act;

(c) notice of objection to the intended marriage having been given and not discharged;

(d) the fact that any person officiating thereat was not lawfully entitled to do so, unless that fact was known to both parties at the time of the ceremony;

(e) any procedural irregularity; or

(f) failure to register the marriage.

5.5: Divorce and Separation

5.5.1: Divorce

Cap 29

- Section 99 – Any married person may petition for divorce.
- Section 100 - No petition before the expiry of two years.
- Section 101- No petition unless the dispute has been referred to a conciliation board.
- Section 107

  Only the court can grant decree of divorce.

  Evidence of breakdown of marriage - adultery, sexual perversion, cruelty etc; but proof of any such matter **does not** entitle a party as

of right to a decree of divorce. To grant divorce the court must be satisfied that **the marriage has broken down beyond repair.**

- Also note subsection 3 which provides as follows:

  "107 (3) Where it is proved to the satisfaction of the court that–

  (a) the parties were married in Islamic form;

  (b) a Board has certified that it has failed to reconcile the parties; and

  (c) subsequent to the granting by the Board of a certificate that it has failed to reconcile the parties, either of them has done any act or thing which would, but for the provisions of this Act, have dissolved the marriage in accordance with the Islamic law,

  the court shall make a finding that the marriage has irreparably broken down and proceed to grant a decree of divorce."

- **NB.** It is important to observe here that when the requirements under (a) (b) and (c) above are met, the court has no choice but to grant a decree of divorce.

5.5.2: Separation

- Separation may arise in either of two ways - (a) judicial or (b) parties may agree to separate.
- Section 99 – Any married person may petition for separation.
- Section 111 – A decree of separation relieves the parties from cohabiting, but shall not dissolve the marriage.
- Please note that just like a decree of divorce, a decree of separation is a complete and independent decree. Thus, a court can grant a decree of separation in lieu of divorce and vice versa only where the

petitioner for divorce has prayed in the alternative – **Dotto Malamla v. Lukelesha Lyaku** [1981] TLR 29.

5.6: Custody of children

- Section 125 – Power of the court to make an order for custody – In making the order the paramount consideration is the welfare of the child.
- **Pulcheria Pundugu v. Samwel Pundugu** [1985] TLR 7
- **Ramesh Rajput v. Sunanda Rajput** [1988] TLR 96
- **Mbegu v. Chanzi** [1971] HCD n. 82
- Section 133- If there are any material changes in the circumstances of the parties after an order of custody, an application to original court has to be made-**Halima Kahema v. Jayantilal G. Karia** [1987] TLR 147

5.7: Division of matrimonial assets

- Section 114 - Power to order division of matrimonial assets when granting or subsequent to the grant of decree of separation or divorce. In exercising the power the court shall have regard to the customs of the community, the extent of contribution made by each party - **Bi Hawa Mohamed v. Ally Seif** [1983] TLR 32.
- **Mohamedi Abdallah v.Halima Lisangwe** [1988] 197
- **Pulcheria Pundugu v. Samwel Huma Pundugu** [1985] TLR 7
- **Somoe Nakuwa v. Said Abdallah Nakuwa** [2001] TLR 175
- **Ramadhani Bakari v. Kichunda Mwenda and Another** [1973] TLR 3

- **Re. Innocent Mbilinyi v. The Administrator of Estate** (1969) HCD n. 283

5.8: Maintenance orders

- Section 115 – A court may order maintenance for spouse.
- **Dinya v. Dawa** (1971) HCD n.30
- **Bahawari v. Bahawari** [1971] HCD n.102
- Section 120 – Maintenance to cease on remarriage.
- Section 129-Duty to maintain children.
- Section 130 – Court may order maintenance for children.
- **Basiliza B. Nyimbo v. Henry Simon Nyimbo** [1986] TLR 93
- **Manyasa v. Mwana Kombo** [1971] HCD n.10

CHAPTER SIX
SENTENCING

6.1: Jurisdiction

(Under the CPA)

- Section 170 – sentences which a subordinate court may pass, that is, except for a scheduled offence, imprisonment for a term not exceeding five years.
- Please note that except where a sentence is passed by a Senior Resident Magistrate of any grade or rank, a sentence for a scheduled offence which exceeds the minimum term of imprisonment prescribed by the Minimum Sentences Act or for any other offence which exceeds twelve months, shall not be carried out until it is confirmed by the High Court – **Wilson Thomas v. Republic**, Criminal Appeal No. 293 of 2007, CAT (unreported).
- Section 326 – conditional discharge.
- Section 337- power to release on probation.
- Section 339 - release on community service.
- Section 341- power to subject to police supervision.

(Under the Penal Code)

- Section 25 (b) – (h) – imprisonment, corporal punishment, fine, etc.
- Section 38 – Absolute and Conditional discharge.

6.2: Factors to be taken into account in sentencing

- The purposes of punishment are prevention, reformation, deterrence, and retribution.
- In deciding the appropriate sentence the court should be guided by a number of factors- (i) The public interest – **Republic v. Kidato Abdalah** [1973] LRT n.82.

  (ii) The nature of the offence and the circumstances under which it was committed. **Tabu Fikwa v. R** [1988] TLR 49.

  (iii) For a first offender the emphasis should be on reformative aspect – **Hattan v. R** [1969] HCD n.234.

  (iv) The gravity of the offence.

  (v) The prevalence of the offence-**Silvanus Leornard Nguruwe v. R** [1981] TLR 66

  (vi) The damage caused, that is, seriousness of injury caused in an assault, rape, etc.

  (vii) The mitigating factors- **Republic v. Suleiman Said and Another** (1977) LRT n. 29

  (viii) The age and the previous record of the accused.

  (ix) The period spent in remand custody.

  (x) The accused's cooperation with law enforcement agencies.

  (xi) Where a trial *de novo* is ordered and if the new trial leads to a conviction the time the appellant has spent in prison serving the sentence at present imposed on him must be taken into account when sentence is passed – **Eustace v. Republic** [1970] EA 393 at page 395.

6.3: The discretion of the court in sentencing

- The general principle is that unless the law prescribes the statutory minimum, the court has discretion to impose a sentence it deems fit. However, the discretion must be exercised judiciously – **Amon Mwangasala v. Republic** [1978] LRT 19.

- The district court as an appellate court– As an appellate court the district court can interfere with a sentence passed by a primary court. In doing so, it is guided by the same principles obtaining in the High Court, that is, where the trial court acted on a wrong principle or overlooked some material facts- **Silvanus Leopold Nguruwe v. Republic** [1981] TLR 66.

6.4: Types of sentences

- Death (s.25(1) Penal Code) for Magistrates with extended jurisdiction
- Imprisonment (s.25(2) Penal Code)
- Corporal punishment (s. 25(3) Penal Code)
- Fine (s. 25(4) Penal Code)
- Forfeiture (s. 25(5) Penal Code)
- Compensation (s.25 (6) Penal Code)
- Security to keep peace (s.25(7) Penal Code)
- Absolute discharge (s.38 Penal Code)
- Conditional discharge (s. 38 Penal Code)
- Probation (s.341 CPA)
- Police supervision (s.341 CPA)
- Restitution (s.357 CPA)

- Costs (s. 32 Penal Code)
- See also kinds of sentences under section 3 of the Community Service Act, No. 6 of 2002

6.5: Concurrent and consecutive sentences

- Except in very exceptional circumstances, where an offender commits more than one offence at the same time and in the same transaction the practice is to impose concurrent sentences – **Chacha Makoli Chacha v. Republic** [1998] TLR 413, **Laurent Analeti and Another v. Republic** [1973] LRT n.34.
- On the other hand, consecutive sentences are an exception to the above rule. Consecutive sentences may be ordered because of the gravity of the offence – **Baguani Mhina Jumbe v. R,** Criminal Appeal No. 120 of 1993, CAT (unreported).

6.6: Substituted sentence

- Where the sentence meted by a trial court is excessive an appellate court may vary and substitute it with a lesser one – **Kabula Mhoja v. Republic** [1986] TLR 248, **Boniface Mbije and Another v. R** [1991] TLR 156.

6.7: Suspended sentence

- Section 330 CPA
- This type of sentence is akin to a conditional discharge. Except for a scheduled offence, a court may impose a sentence of imprisonment but order that the whole or part of it be suspended for a period not

exceeding three years on such conditions as to costs or compensation to be paid by the offender, good conduct, etc.

6.8: Omnibus sentences

Jumanne Ramadhani v. Republic [1992] TLR 40

It is unlawful to award omnibus sentence. Each Count must receive a requisite sentence. The magistrate may then decide to order the sentences either to run concurrently or consecutively depending on the nature of the charges and the evidence unfurled at the trial.

CHAPTER SEVEN

JUDGMENT WRITING

7.1: Definition

- Section 3 CPC – a statement given by a judge or magistrate of the grounds for a decree or order.
- Judgment is the culmination of the trial which finally determines the rights and obligations of the parties or the guilt or innocence of an accused person.

7.2: Style

- Judgment writing is a matter of style. Every judge or magistrate has got his or her own style of composing a judgment. What matters is that the essential ingredients of a judgment should be there – **Amir Mohamed v. Republic** [1994] TLR 138.

7.3: Purpose of a judgment

- To clarify your thoughts.
- To explain your decision to the parties.
- To communicate the reason (s) for the decision to the parties and to the public.

7.4: Elements of a good judgment

- A good judgment is one which complies with the requirements under section 312 of CPA (read together with section 230 thereto) **or** Order XX Rule 4 CPC **or** Rule 16 of GN 312 of 1964, as the case may be. It

must contain a concise statement of the case, the points for determination, reasons for the decision.

7.5: Essentials of a judgment

- Beginning/Heading (title of court case, title and case number, names of the parties and designation of Magistrate).
- Opening (brief facts put forward by the parties).
- Issues and points for determination.
- Decisions on each issue and points with reasons therefor with reference to the evidence (oral and documentary).
- Decretal/Operative part (final order granting or refusing to grant relief in a civil case, and convicting the accused or acquitting him in a criminal case and imposing punishment in case of conviction.
- Signature and designation of a magistrate and the date of the decision.

7.6: Delivery of a judgment

- Section 311 CPA

  To be pronounced in open court either immediately after termination of the trial or on a subsequent date, etc.
- Order XX CPC

  Rule 1 – To be pronounced in open court at once or on some future day.
- Section 28 CPC – Judgment to be delivered within 90 days from the date of hearing to the date of Judgment.
- Section 311 CPA – Judgment to be delivered within ninety days after termination of trial.

NOTE THAT

- In composing a judgment the following important matters must be observed:-

- Eliminate unnecessary words
- Use plain, easy and simple language
- Be precise and to the point
- Edit carefully
- Use the active voice rather than the passive
- Avoid obvious errors
- Use citations properly
- Try to be interesting
- Be particular rather than vague
- Organise your judgment properly
- Avoid quoting extensively from pleadings of the parties and their evidence
- Support your finding on each issue/point with clearly explained reasons
- Ensure linkage and cohesion in the judgment
- Don't cut and paste; quote only when the language of the quoted material is at issue
- Write an ending that recapitulates your analysis.

-Therefore take time to adequately prepare and compose the judgment

CHAPTER EIGHT
JUDICIAL ETHICS AND CONDUCT

8.1: Meaning and general overview

- Ethics means rules of conduct or behaviour pertaining to a particular class of human action.
- Judicial ethics refer to a body of moral principles that control, influence or guide the conduct of behaviour of judicial officers.
- Judicial conduct and ethics address the complete spectrum of judicial conduct, including uses and abuses of judicial power, judicial demeanor, disqualification, ex-parte communications, case management, financial activities and disclosure, civil and criminal liability, methods of discipline and removal, civic and charitable activities, personal conduct and political activities.
- Judicial ethics therefore is part of a large category of legal ethics, a term that apply to lawyers in all branches of the legal profession. But judicial officers form a particular group within the community of lawyers.
- Ethics issues for judicial officers may arise in the courtroom, outside the courtroom and in judgment writing.
- Thus judicial conduct and ethics apply both in and outside the courtroom.
- Judicial ethics thus can be defined as an examination of the proper behaviour of Judges and Magistrates. It concerns an examination of the high standards of judicial conduct necessary for rule of law to flourish.

- It must be noted that failure by judicial officers to live by these standards will inevitably weaken the confidence that the society generally has in the judiciary and ultimately in the justice system as a whole.
- Magistrates do not live in a vacuum .They are the product of society and form an important part of it. But they must stand apart from those who are judged in terms of conduct and ethics as they cannot enjoy the same freedom enjoyed by other citizens like not being a member of political parties. Magistrates as judicial officers are expected to behave according to certain standards of conduct both in and outside of the court.
- The Constitution of the United Republic of Tanzania, Cap 2 under Article 151 defines the ethics of the office of the judge to mean ethical rules guiding the conduct of persons holding the office of Judge or Magistrate.
- **NOTE THAT**: Section 3 of The Judiciary Administration Act, (JAA) 2011, No. 4 of 2011 defines a judicial officer to mean a person in the service, appointed to perform the functions and exercise the powers of adjudication or determination of cases in the courts of law and includes a Judge's Assistant.
- The cardinal principles of judicial ethics that apply to any judicial officer whether in the subordinate court or higher court can be divided broadly into three categories-

  One, concerning the acts attributable to his official functions as a judicial officer;

  Two, concerning his conduct while in public glare;

Third, the expectation of him during his private life. These may necessarily overlap each other.

8.2: The Purpose of Judicial Ethics and Conduct

- To help Magistrates to adhere to highest standards of personal and official judicial conduct.
- To preserve the judicial system fairness, integrity and impartiality by eliminating bias and prejudice.
- To enhance public trust and confidence in the judiciary.
- To provide guidance to Magistrates for regulating judicial conduct.
- To improve conduct and help Magistrates to perform their duties more efficiently.
- To safeguard and promote Independence of the Judiciary.
- To maintain confidence in the expectations of citizens.

8.3: Sources of Judicial Ethics and Conduct

- Judicial oath is the starting point of judicial ethics. The oath makes a judicial officer to step into a position of judicial power.
- The Judicial oath in Tanzania states:

  > "I.....Do swear that I will well and truly serve the United Republic of Tanzania in the office of.... and I will do justice in accordance with the Constitution of the United Republic of Tanzania as by law established and in accordance with the laws and customs of the United Republic without fear or favour, affection or ill will. So help me God."

- The Constitution of the United Republic of Tanzania, Cap 2.

- International standards of judicial conduct; The Bangalore Principles of Judicial Conduct.
- The Judiciary Administration Act No. 4 of 2011.
- The Maxims for Magistrates.
- The Code of Conduct for Judicial Officers of Tanzania adopted in 1984 by Judges and Magistrates in a Conference held at Arusha in March 15th – 16th.
- The Code of Ethics and Conduct for Public Service, 2005.
- The Leadership Code of Ethics, 1995 (Cap 398) (Section 4 defines a public leader to include a judge and a magistrate)

8.4: Breach of the Code of Conduct

- Para (iii) of the Explanations (page 1 of the Code) reads:-

  "Violation of any of the rules contained in this code shall constitute judicial misconduct and may entail disciplinary action."

8.5: Fundamental matters contained in the Codes of conduct and ethics

8.5.1: The Rules of the Code of Conduct for Judicial Officers of Tanzania, 1984

- The Code of Conduct has four (4) rules:-

Rule 1- A Judicial Officer should avoid impropriety and appearance of impropriety in all his duties.

Rule 2- A Judicial Officer should be competent and have the necessary knowledge and skills in adjudicative and administrative duties. The rule is divided into four parts:

A-Adjudicative duties

B-Administrative

C-Disqualification

D-Waiver of disqualification

Rule 3- A judicial officer may engage in activities to improve the law, the legal system and the administration of justice.

Rule 4 - A judicial officer should regulate his extra judicial activities to minimize the risk of conflict with his judicial duties.

8.5.2: Bangalore Principles of Judicial Conduct, 2003

- The Bangalore Principles of Judicial Conduct were adopted in April, 2003. These were annexed to the report presented to 59th Session of the United Nations Special Rapparteur on the Independence of Judges and Lawyers, Doto Param Cumaraswamy.
- The Bangalore Principles of Judicial Conduct has become the International model for professional ethics of judicial officers and many countries in the Commonwealth and the world have made the same part of the laws.
- The Principles contain six fundamental values:

Value 1- Independence

Judicial independence is a pre-requisite to the rule of law and a fundamental guarantee of a fair trial. A judge shall therefore uphold and exemplify judicial independence in both its individual and institutional aspects.

Value 2-Impartiality

Impartiality is essential to the proper discharge of the judicial office. It applies not only to the decision itself but also to the process by which the decision is made.

Value 3-Integrity

Integrity is essential to the proper discharge of the judicial office.

Value 4- Propriety

Propriety and the appearance of propriety are essential to the performance of all the activities of a judge.

Value 5- Equality

Ensuring equality of treatment to all before the courts is essential to due performance of the judicial office.

Value 6- Competence and diligence

Competence and diligence are prerequisite to the due performance of judicial office.

8.5.3: The Code of Ethics and Conduct for Public Service

- Code of Ethics and conduct for Public service (under the Authority of section 34 of the Public service Act, 2002 and Regulation 65 (1) of the Public service Regulations 2003). In order for the public service to be efficient and respected, public servants must behave, conduct and observe the following matters constituting the Code of Ethics and Conduct:-

  1. Pursuit of excellence in service
  2. Loyalty
  3. Diligence
  4. Impartiality
  5. Integrity
  6. Accountability
  7. Respect for law

8. Proper use of official information

Note: Apart from those principles a Magistrate as a judicial officer is required:-

(a) To be viewed by the public correctly.

(b) Demonstrate competence and hard work.

(c) To show uprightness. Uprightness here means and includes incorruptibility, honesty and moral integrity.

(d) To demonstrate good personal habit and behaviour.

(e) To demonstrate courtesy.

(f) To demonstrate patience and impartiality and punctuality.

(g) To guard against first impressions by parties in court.

(h) Dress properly.

8.5.4: The Leadership Code of Ethics Act, Cap 398 RE 2015

4 (1) In this Act, unless the context requires otherwise–

"Code" means the Code of Ethics for Public Leaders established by this Act;

"Commissioner" means the Ethics Commissioner appointed under section 19;

"Government" means the Union Government or the Revolutionary Government of Zanzibar;

"Minister" means the Minister responsible for public leadership code of ethics;

"public leader" means any person holding any of the following public offices, namely–

(i) President of the United Republic;
(ii) Vice-President of the United Republic;
(iii) President of Zanzibar;
(iv) Prime Minister;
(v) Chief Minister of Zanzibar;
(vi) Speaker and Deputy Speaker;
(vii) Chief Justice of the United Republic;
(viii) Minister, Deputy Minister and Regional Commissioner;
(ix) Attorney-General;
(x) Judge and Magistrate;
(xi) Member of Parliament;
(xii) …

6. The Code of Ethics for public leaders shall seek as far as possible to institute and invoke the following principles in respect of the conduct of public leaders, namely–

(a) in relation to ethical standards, that public leaders shall while in office act with honesty, compassion, sobriety, continence, and temperance, and uphold the highest possible ethical standards so that public confidence and trust in the integrity, objectivity and impartiality of Government are conserved and enhanced;

(b) in relation to public scrutiny, that public leaders shall have an obligation–

(i) to perform their official duties and arrange their private affairs in a manner that would bear the closest public scrutiny, an obligation that is not fully discharged by simply acting lawfully;

(ii) in relation to all public leaders whether in elective or appointive offices, there is to be established a procedure for declaration of all property or assets owned by, or liabilities owed to him, his spouse or unmarried minor children, without prejudice to the right of wives and husbands of public leaders to own property independently of their spouses;

(c) in relation to decision making, that public leaders shall, in fulfilling their official duties and responsibilities make decisions in accordance with law, in the public interest and with regard to the merits of each case;

(d) in relation to private interests, that public leaders shall not have private interests, other than those permitted by the Code that would be affected particularly or significantly by government actions in which they participate;

(e) in relation to public interest, that on appointment or election to office, and thereafter, public leaders shall so arrange their affairs as will prevent real, potential or apparent conflicts of interest from arising, but if such a conflict does arise between the private interests of a public leader and his official duties and responsibilities, the conflict shall be resolved in favour of the public interest;

(f) in relation to gifts and benefits, that public leaders shall not solicit or accept transfers of economic benefit other than incidental gifts,

customary hospitality or other benefits of nominal value, unless the transfer is pursuant to an enforceable contract or property right of the public leader;

(g) in relation to preferential treatment, that public leaders shall not step out of their official roles to assist private entities or persons in their dealing with the government where this would result in preferential treatment to any person;

(h) in relation to inside information, that public leaders shall not knowingly take advantage of, or benefit from, information which is obtained in the course of their official duties and responsibilities and that is not generally available to the public;

(i) in relation to government property that public leaders shall not directly or indirectly use, or allow the use of, government property of any kind, including property leased to the government, for purposes of according economic benefit to the leader;

(j) in relation to post-employment, that public leaders shall not act, after they leave public office, in such a manner as to bring the service to ridicule or take improper advantage of their previous office, so that possibilities may be minimised of–

(i) allowing prospects of outside employment to create a real, potential or apparent conflict of interest for public leaders while in public office;

(ii) obtaining preferential treatment or privileged access to government after leaving public office;

(iii) taking personal advantage of information obtained in the course of official duties and responsibilities until it becomes generally available to the public; and

(iv) using public office to unfair advantage in obtaining opportunities for outside employment.

8. The provisions of this Part shall constitute part of the code of ethics for public leaders according to the Constitution, and breach of the code shall result in any of the following actions, namely–

(a) warning and caution;

(b) demotion;

(c) suspension;

(d) dismissal;

(e) advising the leader to resign from the office to which the breach relates;

(f) imposition of other penalties provided for under the rules of discipline related to the office of the leader; and

(g) initiating action for the leader to be dealt with under the appropriate law.

9 (1) Every public leader shall, except where the Constitution or any other written law provides otherwise–

(a) within three months after the commencement of this Act; or

(b) within thirty days after taking office;

(c) at the end of each year; and

(d) at the end of his term of office,

submit to the Commissioner a written declaration, in a prescribed form, of all property or assets owned by, or liabilities owed to him, his spouse or unmarried minor children, subject to subsection (2) and subsection (5).

(2) Where the declaration of assets is made by the Commissioner under this section, the declaration shall be submitted to the President.

(3) A public leader shall not be required to declare as his property, and property shall not be deemed to be declarable by a public leader if–

(a) it is not matrimonial property;

(b) it is not jointly owned with the public leader's spouse or spouses;

(c) there is no allegation that a public leader appears to have suddenly and inexplicable come into possession of extraordinary riches in relation to his observable sources of income.

(4) Any property or asset acquired by a public leader after the initial declaration required by paragraph (a) or (b) of subsection (1) and which is not attributable to income, gift, or loan approved in the Code shall be deemed to have been acquired in breach of the Code unless the contrary is proved.

(5) Any public leader who has previously made a declaration of assets under this section shall, during the subsequent declaration be required to declare as to the increase or decrease of assets as the case may be.

(6) The public leader shall, in making the declaration of assets under this section–

(a) state the monetary value of the declared assets and the source or the manner in which he has acquired the assets;

(b) state or disclose his debts if any and any other liabilities

12 (1) A public leader shall be considered to have breached the Code if he knowingly acquires any significant pecuniary advantage, or assists in the acquisition of any pecuniary advantage by another person, by–

(a) improperly using or benefiting from information which is obtained in the course of his official duties and which is not generally available to the public;

(b) disclosing any official information to unauthorised persons;

(c) exerting any improper influence in the appointment, promotion, disciplining or removal of a public officer;

(d) directly or indirectly converting Government property for personal or any other unauthorised use for the purposes of reaping private economic benefit;

(e) soliciting or accepting transfers of economic benefit, other than benefits of nominal value, including customary hospitality and traditional or token gifts;

(f) gifts from close family members or from public leaders elsewhere; or

(g) transfers pursuant to an enforceable property right of the public leader or pursuant to a contract for which full value is given.

(2) The public leader shall, where he receives a gift of the value exceeding fifty thousand shillings–

(a) declare the received gift and its value; and

(b) submit the declaration of the gift to the accounting officer of the office concerned, who shall in writing direct as to the use or disposal of the gift.

18 (1) The Ethics Secretariat, which is established by section 132 of the Constitution of the United Republic, shall be an extra-ministerial department of Government under the Office of the President.

(2) The Secretariat shall, subject to the Constitution and to this Act, have the duty to receive–

(a) declarations which are required to be made by public leaders under the Constitution or any other law;

(b) allegations and notifications of breach of the Code from members of the public; and

(c) inquiries into any alleged or suspected breach of the Code by all public leaders who are subject to this Act.

(3) The Secretariat shall, in performing its duties under this section, have the power to receive and entertain all allegations in respect of any public leader, whether oral or written from the members of public without inquiring as to the names and addresses of the person who has made the allegation.

(4) The Secretariat shall, in addition to the duties conferred on it under subsection (2) and (3) have power to initiate and to conduct any investigation in respect of breach of ethics prescribed under this Act.

(5) Notwithstanding subsection (4), the Commissioner shall, where the Secretariat intends to conduct investigation in respect of Bank Accounts, by order in writing Supported by warrant issued by a Magistrate upon showing cause to the Magistrate as to why the Order should be issued, authorise any officer of the Secretariat to investigate any bank account of a public leader.

(6) Any Order made by the Commissioner under subsection (1) shall be sufficient authority for the disclosure or production by any person of all or any information accounts, documents or articles as may be required by the officer of the Secretariat so authorized.

(7) The President shall provide for the staffing of the Secretariat, and for the taking by them of the oath of secrecy in respect of matters handled by them.

8.6: Disciplinary Procedures for Magistrates

8.6.1: The Judicial Service Commission (JSC)

- The Judicial Service Commission is established under Article 112 of the Constitution of the United Republic of Tanzania and its functions and powers are provided under Article 113.
- According to Article 112 (2) of the said Constitution, members of the Commission are -

  (a) the Chief Justice who is the Chairman;

  (b) the Attorney General;

  (c) a Justice of Appeal of Tanzania who is appointed in that behalf by the President after consultation with the Chief Justice;

  (d) the Principal Judge; and

  (e) two members who are appointed by the President.
- Article 113 (1) of the Constitution provides for the functions of the Commission which are –

  (a) to advise the President regarding appointments of the Judges of the High Court;

  (b) to advise the President on matters relating to discipline of Judges;

(c) to advice the President in relation to salaries and remuneration for Judges;

(d) to advise the President in respect of appointment and discipline for Registrar of the Court of Appeal and the Registrar of the High Court;

(e) to appoint magistrates and control their discipline; and

(f) to establish various committees for purposes of implementation of its functions.

- Article 113 (4) of the said Constitution provides that Powers of appointments, confirmation, disciplinary and removal of magistrates of courts in Mainland Tanzania is vested in the Judicial Service Commission.
- Similarly, section 29 (1) (a) and (e) of the Judiciary Administration Act, 2011, No. 4 of 2011 stipulates the functions of the Judicial Service Commission.
- Section 33 (1) (JAA) -Subject to the provisions of this Act, the Commission may, by regulations, delegate the exercise of any function conferred on it by the Constitution other than the power of removal in the public interest to the Committees established or which may be established under this Act.

(2) Without prejudice to the provisions of subsection (1), the Commission may delegate its functions as follows-

(a) .....;

(b) investigation and inquiry into discipline relating to judicial officers to the Judicial Officers Ethics Committee established under this Act;

(c) investigation and inquiry into discipline relating to any Magistrate or Judge's Assistant to the Regional Judicial Officers Ethics Committees established under this Act; -

(d) interdiction of any Magistrate or Judge's Assistant to the Judge in-charge of the Zone or Division of the High Court, pending the continuation and completion of disciplinary proceedings;

(e) …….

- Article 113A of the Constitution prohibits judges and magistrates to join or to be members of political parties.
- Therefore, the Judicial Service Commission (JSC) employs, promotes and disciplines unethical magistrates by termination, retirement on public interest or dismissal depending on the gravity of the wrongful conduct.

8.6.2: The Judicial Officers Ethics Committee

- Established under section 46 of the Judiciary Administration Act, 2011, (No. 4 of 2011).
- Except the Principal Judge and Registrar of the High Court who are members by virtue of their offices, the rest of members are appointed by the Chief Justice. Members comprise the Principal Judge (Chair), two high court judges and two judicial officers. The Registrar of the High Court is the Secretary to the committee.
- The functions of the Judicial Officers Ethics Committees are:-
  - (i) receive complaints against judicial officers other than justice of Appeal, the Judge Kiongozi or judge of the High Court;
  - (ii) serve a judicial officer with a complaint;
  - (iii) forward a complaint to the Commission;

(iv) inquire into the complaint;

(v) warn a judicial officer for any complaint which does not warrant reference to the Commission; and

(vi) take any other means as it may deem necessary in the circumstances.

- It is to be noted that any complaint against a judicial officer which the committee considers to be grave shall be submitted to the Judicial Service Commission for consideration (S.37 (2) and S. 46(2) JAA respectively).
- Section 47 (3) – in conducting its business the Judicial officers Ethics Committee is guided by the procedure stipulated in the fourth schedule to the Act.
- Section 49 – sections 41, 42, 43, 44 and 45 JAA relating to the complaints procedure shall apply *mutatis mutandis* to complaints against judicial officers.

8.6.3: The Regional Judicial Officers Ethics Committee

- Established under section 50 of the JAA.
- Functions of the Committee

  Every Regional Judicial Officers Ethics Committee shall [s.50 (5)]:-

  (i) receive and investigate complaints submitted by members of the public concerning District or Resident Magistrates in the regional *(sic)* and submit reports to the Commission;

  (ii) carry out inquires into the conduct of a District or Resident Magistrate in consequence of a direction so to do given by the Judge

in charge, and report back to him or take other appropriate action according to law; and

(iii) perform such other functions as the Chief Justice may in writing under his hand to the Chairman, direct.

- The complaints procedure is as stipulated in section 50 (7) – (14) JAA.

8.6.4: The District Judicial Officers Ethics Committee

- Established under section 51 JAA.

- Functions of the Committee

  (i) receive and investigate complaints submitted by members of the public concerning Primary Court Magistrates in the district and submit reports to the Commission;

  (ii) carry out inquiries into the conduct of the Primary Court Magistrate in consequence of a direction so to do given by the Judge in charge, and report back to him;

  (iii) perform such other functions as the Minister may direct.

- The mandate of the Committee in dealing with the complaint, the role of the judge in charge and complaints procedure is as stipulated in section 51 (3) – (7)
- The finding of all the Committees must be reported to the Judicial Service Commission.
- Note that subsection 7 of section 51 provides that- "for the purpose of this part, "grave offence" shall include offences under the Prevention and Combating of Corruption Act."

8.6.5: Dismissal and removal

- Section 35 (1) JAA-The powers to remove from office or terminate the appointments of judicial officers other than the Chief Justice, Justices of Appeal, the Jaji Kiongozi, Judges of the High Court, the Chief Registrar, the Registrar of the Court of Appeal and the Registrar of the High Court, shall be exercised in accordance with this section.

  (2) A judicial officer shall not be dismissed unless the Commission is satisfied that-

  (a) a disciplinary charge has been made and proved on a balance of probability against such officer on any or all of the following grounds-

  (i) misconduct incompatible with the holding of judicial office;

  (ii) gross negligence in the discharge of judicial duties;

  (iii) breach of the Code of Judicial Ethics; and

  (iv) bad reputation incompatible with the holding of judicial office;

  (b) such officer has had an opportunity to answer a charge under paragraph (a); and

  (c) an inquiry has been held into the charge.

8.6.6: Disciplinary Charges

The charge against a magistrate or judicial officer may be preferred in the following grounds:

(a) misconduct incompatible with the holding of judicial office,

(b) gross negligence in the discharge of judicial duties,

(c) breach of the code of judicial ethics, and

(d) bad reputation incompatible with the holding of judicial office-Section 35 (2) of the JAA.

8.6.7: Some instances of misconduct

A judicial officer commits an offence against discipline if he or she does all or any of the following:-

(a) conduct himself or herself in any manner prejudicial to the good image, honour, dignity and reputation of the service;

(b) practices favouritism, nepotism or corruption whether for personal advantage or gain or that of any other person;

(c) practices discrimination of sex, race, ethnic origin, tribe, birth, creed or religion, social or economic standing, political opinion or disability;

(d) is a habitual late comer or absents or absconds from duty without reasonable excuse;

(e) is insubordinate, rude, abusive, and disrespectful or uses vulgar language;

(f) is lazy or produces poor standard work;

(g) is untrustworthy or lacks integrity in public or private transaction;

(h) engages in private interests at the expenses of his or her official duties;

(i) divulges official information to unauthorised persons;

(j) acts in contravention of the code of conduct for judicial officers, judicial oath or any other oaths taken by the judicial officer;

(k) is convicted of a criminal offence by the court of law;

(l) disregards the chain of command in his or her place of employment without reasonable excuse;

(m) abuses judicial authority; or

(n) in any way contravenes any provisions of the law standing orders or any other instructions relating to the discipline of judicial officers.

CHAPTER NINE
CHILDREN AND THE LAW

9.1: The Law of the Child Act No. 21 of 2009

- The purpose and objective of the Law of the Child Act and the Juvenile Court Rules are-
  - (a) ensure that children are given a fair trial;
  - (b) ensure that children are accorded rights contained in the Act and to the greatest extent possible, to promote, protect and maintain the welfare of the child with a view to giving effect to International and regional conventions and standards on the rights of the child;
  - (c) ensure fairness between the prosecution and the accused;
  - (d) respect the interests of witnesses and victims and keep them informed of the progress of the case;
  - (e) ensure that the child is enabled to participate in the proceedings;
  - (f) deal with the case efficiently and expeditiously; and
  - (g) ensure that appropriate information is available to the court when bail and sentence are considered.
- Steps to ensure effective Case Management in criminal cases of children in conflict with the law and children in need of care are-
  - (a) Identify the real issue early.
  - (b) Give directives to the parties to submit the names of their witnesses and issuing summons as may be appropriate.
  - (c) Summoning persons to provide support to witnesses or victims of crime with special needs e.g. witness in needed of

interpretation services or persons who can provide expert opinions.

(d) Set a time-table.

(e) Give clear, mandatory directions early and properly.

(f) Manage the progress of the case.

(g) Ensure evidence is presented clearly and swiftly.

(h) Minimise and discourage delay (perhaps with the threat of dismissal).

(i) Encourage cooperation not confrontation.

(j) Permit adjournments only in exceptional cases/circumstances.

(k) Where possible, make full use of relevant IT.

(l) Ensure proper notice to the parties (the cause list should provide at least two days' notice of proceedings).

(m) Practice individual calendar system for magistrates and change when it is not practicable.

(n) File management is essential in reducing delays and improving the delivery of justice (avoiding wrong file or documents in file).

- Based on the case management principles contained in Rule 16 of the Juvenile Court Rules, the role of the court in civil cases involving a child is to:

  (a) deal with cases expeditiously and fairly;

  (b) deal with cases in ways which are proportionate to the nature, importance and complexity of the issues;

  (c) safeguard and promote the welfare of children; and

  (d) promote the upbringing of children by their families.

- Section 4 (1) Act No. 21 of 2009 – "child" – a person below the age of eighteen years.
- Section 113 Act No. 21 of 2009– prescribes the process of inquiring into the age of a child.

9.2: Principles of Justice for Children

The overriding principles are:

- The best interests of the child shall be the primary consideration;
- Every child shall be treated with respect and without discrimination of any kind such as: on the grounds of sex, race, religion, language, disability, health status or social economic status; and
- Every child shall have the right to participate in the proceedings and to be heard either directly or through an advocate, guardian and *ad litem* or any other representative.

9.3: The Law on Juvenile Justice

- As stated in its Preamble, Act No. 21 of 2009 (*supra*) was enacted "for reform and consolidation of laws relating to children, to stipulate rights of the child and to promote, protect and maintain the welfare of a child.
- Section 115 Act No. 21 of 2009– a child witness - procedure to follow where a child called as a witness does not understand the nature of an oath.
- Section 127 of the Evidence Act Cap 6 has been amended by section 26 of the Written Laws (Miscellaneous Amendments) Act, No. 2 of 2016.

- Section 119 (1) and (2) – a child shall not be sentenced to imprisonment. Where a child is convicted of any offence punishable with imprisonment the court may, in addition or alternative to any other order discharge the child without making any order, etc.
- Sentences/orders that may be passed against a child include probation/ conditional discharge (s. 116), discharge, repatriation, care by a fit person (Section 119 (2)) and approved school order (section 120).

9.4: The Juvenile Court – Sections 97 -114, Act No. 21 of 2009

- Section 97 (1) – establishment of a juvenile court.
- The Chief Justice may designate any premises used by a primary court to be a juvenile court. (Chief Justice has already designated through GN No. 314 of 2016-The Law of the Child (Designation of Juvenile Courts) Notice, 2016). Please note that the catch word here is "designate".
- A resident magistrate shall be assigned to preside over the Juvenile Court.
- Section 98 – jurisdiction of the Juvenile Court – to hear and determine criminal charges against a child over the minimum age of criminal responsibility, committal hearings in relation to offences for which the High Court has original jurisdiction, civil law applications relating to a child (parentage, custody, access, maintenance and child care and protection).

9.5: The trial procedure and practice

- Section 99 Act No. 21 of 2009– procedure for conducting proceedings by the Juvenile Court. (Note particularly para (b) subsection (1) and Rule 1 (1) of The Law of the Child (Juvenile Court Procedure) Rules, 2016 – GN 182 of 2016.

9.6: Sentencing

- Section 119 (1) Act No. 21 of 2009-A child shall not be sentenced to imprisonment.
- The sentence given to juveniles must focus on rehabilitation rather than punishment.
- **Republic v. Asia Salum and other** [1988] TLR 12
- **Republic v. Uswege Bukuku** [2001] TLR 337

9.7: Sentencing principles

- Rule 49 (1) of Juvenile Court Rules GN 182 of 2016 provides that the court shall, before reaching a decision on the appropriate sentence for a convicted child, have regard to the following principles:

  -The need for proportionality by reference to the circumstances of both the offence and the offender;

  -The importance of rehabilitating and reintegrating child offenders;

  -The need to maintain and strengthen family relationships whether possible;

  -The desirability of imposing the least restriction consistent with the legitimate aim of protecting victims and community;

-The importance of child offenders accepting responsibility for their actions and being able to develop responsible, beneficial and socially acceptable ways;

-The need to take into account factors that have contributed to the child's offending behavior; including any mental health problems or learning disability, poverty, low educational achievement and lack of parental care; and

-The need to take into account the special circumstances of particular groups of child offenders, especially children living in difficult circumstances.

- Rule 49 (2) of the Juvenile Court Rules provides in addition, that the court shall, before passing a sentence, take into account the following:

  -The social enquiry report;

  -Any plea of mitigation made by a child or made on her/his behalf;

  -The culpability of the child and the harm caused;

  -That placement in an Approved School should only be imposed as an exceptional measure, as a last resort and for the shortest appropriate period of time; and

  -Whether a discharge or a non- custodial sentence would be in the best interests of the child and serves the interests of justice.

9.8: Types of Sentences (Non- custodial orders)

- Absolute discharge, repatriation order or 'handing over' to a fit person or institution-Section 119(2) Act No. 21 of 2009.
- Conditional discharge- Rule 50 of the Juvenile Court Rules GN No. 182 of 2016.

- Fine, compensation or costs-Rule 51 of the Juvenile Court Rules GN No. 182 of 2016.
- Probation orders- Rule 52 of the Juvenile Court Rules GN No. 182 of 2016.

9.9: Breach of non- custodial orders

- Rule 53 of the Juvenile court Rules provides that if a child breaches a non- custodial order, the prosecutor may refer the case back to the court. The court can confirm or amend the original order, or choose another non-custodial order.
- The court can impose a custodial order if the circumstances enumerated under rule 54 of the Juvenile Court rules are established.

9.10: Approved School (Custodial orders)

- Section 119 (1) Act No. 21 of 2009 provides that a child shall not be imprisoned. The only available custodial order is a Committal to an Approved School which must be given in peculiar circumstances.
- Rule 54 (1) of the Juvenile Court Rules GN No. 182 of 2016 states that Children may only be given a custodial sentence if:

  -The offence is a serious offence of violence or the child is a persistent offender and has committed offences that would if committed by an adult be punishable by a custodial sentence;

  -The Court believes that there is a significant risk of harm to members of the public.
- Approved School is a last resort custodial sentence. It must be noted that lack of parental care or fixed abode is not a reason to resort to/ impose approved school custodial sentence.

- The maximum sentence is 3 years or until the child attains 18 years
- Section 124 Act No. 21 of 2009 sets out information that is required to support an Approved School order.
- Section 127 Act No. 21 of 2009 permits approved school manager to apply for extension detention up to a year if the child is deemed to be a threat to the public.

NOTE THAT: Child protection cases that reach a court may include-

- Place of safety;
- Care order;
- Supervision order;
- Search and production order;
- Exclusion order;
- Guardianship; and
- Foster care.